

CLERK'S INSTRUCTIONS

Date: September 2025

UNITED STATES BANKRUPTCY COURT
MIDDLE DISTRICT OF GEORGIA

NOTICE

The Clerk's Instructions provides a single source of information to bankruptcy practitioners in the Middle District of Georgia, combining both the former Clerk's Instructions and the Bankruptcy Reference Manual. It has been prepared using information, policies, and procedures both as required by Local Bankruptcy Rules and by accepted local practice.

Notwithstanding any information, policy, or procedure contained in the Clerk's Instructions, the legal sufficiency of any matter filed in the court is determined solely by reference to the United States Bankruptcy Code, the Federal Rules of Bankruptcy Procedure, Local Rules of the Court, and any administrative orders of the United States Bankruptcy Court for the Middle District of Georgia.

Procedural, form, and other requirements set forth by Local Rules are noted where appropriate in the Clerk's Instructions. Other information contained herein represent suggestions concerning preferred practices in the court.

The Clerk's Instructions are subject to change as laws, regulations, policies, and procedures which affect operations in this court change.

The Clerk's Instructions will use the following abbreviations:

"FRBP" for Federal Rules of Bankruptcy Procedure

"FRCP" for Federal Rules of Civil Procedure

"LBR" for Local Bankruptcy Rules

Practitioners are welcome to submit recommended changes to the Clerk's Instructions at any time to the Clerk of Court at Kyle_George@gamb.uscourts.gov

KYLE GEORGE
CLERK OF COURT

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I. BANKRUPTCY COURT AT A GLANCE

Business Hours of the Court

The public business hours of the Office of the Clerk are 8:30 a.m. to 5:00 p.m., EST, all days except Saturday, Sunday and federal holidays. Registered users of the CM/ECF system have access to file and view documents 24 hours per day, 7 days a week. In an emergency and subject to review by the court, papers may be filed at other times by making prior arrangements with the Clerk or Chief Deputy (see Sections II and III).

Judges

The judges of the Court are:

The Honorable Austin E. Carter, Chief Judge
The Honorable John T. Laney, III
The Honorable Robert M. Matson

Clerk of Court and Chief Deputy Clerk

Kyle George - Clerk
Janice Thiel - Chief Deputy Clerk

Mailing Address of the Court

Macon Office: P. O. Box 1957, Macon, GA 31202

Columbus Divisional Office: P. O. Box 2147, Columbus, GA 31902

Telephone Numbers - Clerk's Office

<u>Macon Office</u>	478-752-3506
	Direct Dial
Chief Deputy	749-6831
Administrative Services Specialist	749-6840
Financial Deputy (Macon/Columbus)	749-6844
Courtroom Deputy/Calendar Clerk (Judge Matson)	749-6814
Courtroom Deputy/Calendar Clerk (Judge Carter)	749-6885
Personnel Specialist	749-6840
Procurement Deputy	749-6845
Supervisor	749-6829
Supervisor	749-6817

Columbus Office**706-649-7837**

Operations Manager
Courtroom Deputy/Calendar Clerk (Judge Laney)
Deputy-in-Charge

Direct Dial
706-596-7141
706-596-7153
706-596-7139

Court Hearing Locations

Albany Division	C. B. King U. S. Courthouse 201 W. Broad Avenue Albany, GA 31701
Athens Division	United States Courtroom U. S. Post Office Building 115 E. Hancock Avenue Athens, GA 30601
Columbus Division	U. S. Bankruptcy Courtroom One Arsenal Place, Suite 309 901 Front Avenue Columbus, GA 31901
Macon Division	U. S. Bankruptcy Courtroom A (Judge Matson) or Courtroom B (Judge Carter) 433 Cherry Street Macon, GA 31201
Valdosta Division	U. S. Courtroom, 2 nd Floor U. S. Courthouse 401 N. Patterson Street Valdosta, GA 31601

While hearings are scheduled in all divisions, the only staffed offices are in Macon and Columbus.

341 Meeting Locations

All 341 Meeting of Creditors for the United States Bankruptcy Court, Middle District of Georgia will be held virtually. Please see our local website for call in information. www.gamb.uscourts.gov; or call (478) 752-3506 or (706) 649-7837.

United States Trustees and Trustees

Trustees:

Jenny Walker

Chapter 11 Subchapter V
PO Box 1606
Macon, GA 31202 (478-749-1724)

Walter W. Kelley

Ch 7 Col, Val, Mac, Ath, Alb - Ch. 12 All Div.
P. O. Box 70879
Albany, GA 31708
Chapter 7 Cases (229) 888-9128
Chapter 12 Cases (229) 888-2257

Joy R. Webster

Chapter 7 - Mac, Col, Ath, Alb, Val
P. O. Box 1098
Macon, GA 31202 (478) 742-1889

Camille Hope

Chapter 13 - Mac, Ath
P. O. Box 954
Macon, GA 31202 (478) 742-8706

Jonathan DeLoach

Chapter 13 - Alb, Col, Val
PO Box 1907
Columbus, GA 31902-1907 (706) 327-4151

U. S. Trustee and Assistant U. S. Trustees Rule 5003(e) Noticing-Government Address Register

United States Trustee

Region 21
75 Ted Turner Drive, SW
Suite 362
Atlanta, GA 30303
404-331-4437

Assistant U. S. Trustee

Northern District of Georgia
75 Ted Turner Drive, SW
Suite 362
Atlanta, GA 30303
404-331-4437

Assistant U. S. Trustee

Middle District of Georgia
440 Martin Luther King Jr. Blvd., Ste 302
Macon, GA 31201
478-752-3544

Assistant U. S. Trustee

Northern District of Florida
110 East Park Avenue
Suite 128
Tallahassee, FL 32301
850-942-1660

US Small Business Administration

Georgia District Office
233 Peachtree Street, NE, Suite 300
Atlanta, GA 30303
bankruptcynotices@sba.gov

Social Security Administration

Office of the General Counsel
Office of Program Litigation
Attn: Bankruptcy
6401 Security Boulevard
Baltimore, MD 21235

Other Pertinent Addresses

United States Attorney
300 Mulberry St., 4th Floor
PO Box 1702
Macon, GA 31202-1702
478-752-3511

Correspondence to IRS:
Internal Revenue Service
P. O. Box 7346
Philadelphia, PA 19101-7346
Toll Free: 800-973-0424 / Fax: 267-941-1015

Overnight mail to IRS:
Internal Revenue Service
2970 Market Street; Mail Stop 5-Q30.133
Philadelphia, PA 19104-5016

Payments to IRS:
Internal Revenue Service
P. O. Box 7317
Philadelphia, PA 19101-7317

**Bankruptcy Code Section 505 Requests and
All Other Service Notices:**
Franchise Tax Board
Bankruptcy Section, MS: A-340
P. O. Box 2952
Sacramento, CA 95812-2952

Michigan Department of Treasury
Tax Policy Division
ATTN: Litigation Liaison
2nd Floor, Austin Building
430 West Allegan Street
Lansing, MI 48922

Georgia Department of Revenue
Bankruptcy
2595 Century Parkway NE, Suite 339
Atlanta, GA 30345
404-417-6543
bankruptcy.notices@dor.ga.gov

Texas Workforce Commission
Bankruptcy Unit, Rm 556
101 E. 15th St.
Austin, TX 78778-0001

US Securities & Exchange Commission
Office of Reorganization – Atlanta Regional Office
950 East Paces Ferry Road, NE
Suite 900
Atlanta, GA 30326-1382
404-842-7600/email: atlanta@sec.gov

Service of Adversary Proceedings:
Franchise Tax Board
c/o General Counsel Section
Chief Counsel
P. O. Box 1720, MS A-260
Rancho Cordova, CA 95741-1720

U.S. Attorney General
US Department of Justice
950 Pennsylvania Ave., NW
Washington, DC 20530-0001

Tennessee Department of Revenue
c/o Tennessee Attorney General's
Office
Bankruptcy Division
PO Box 20207
Nashville, TN 37202-0207

Federal Holidays

The United States Bankruptcy Court closes in observance of the following federal holidays:

*New Year's Day	January 1
Martin Luther King, Jr.'s Birthday	3rd Monday in January
President's Day	3rd Monday in February
Memorial Day	Last Monday in May
*Juneteenth	June 19
*Independence Day	July 4
Labor Day	1st Monday in September
Columbus Day	2nd Monday in October
*Veteran's Day	November 11
Thanksgiving Day	4th Thursday in November
*Christmas Day	December 25

* When this holiday occurs on a weekend, the court will close on the nearest Friday or Monday.

Case/Judge Assignment

Upon the filing of a petition, the case is assigned to a Bankruptcy Judge overnight. Unless there is a conflict of interest, cases are assigned as follows:

THE HONORABLE AUSTIN E. CARTER

Athens Division Macon Division

THE HONORABLE JOHN T. LANEY, III

Columbus Division Valdosta Division

THE HONORABLE ROBERT M. MATSON

Albany Division Macon Division

Division Numbers/Assignment of Case Numbers

Each division is assigned a division number:

- Albany - 1
- Athens - 3
- Columbus - 4
- Macon - 5
- Valdosta - 7

The division number is always a part of the case number and is the first number after the dash, i.e., 19-~~4~~0493. Also, the case number must include the initials (in all capital letters) of the judge assigned to the case, i.e., 17-40493-JTL, 17-30199-AEC or 14-11021-RMM.. Please include the judge's initials as a part of the case number when filing all pleadings.

Divisions and Counties in each Division

ALBANY DIVISION - 1

Baker Webster
Ben Hill Worth
Calhoun
Crisp
Decatur
Dougherty
Early
Grady
Lee
Miller
Mitchell
Schley
Seminole
Sumter
Terrell
Turner

ATHENS DIVISION - 3

Clark
Elbert
Franklin
Greene
Hart
Madison
Morgan
Oconee
Oglethorpe
Walton

COLUMBUS - 4

Chattahoochee
Clay
Harris
Marion
Muscogee
Quitman
Randolph
Stewart
Talbot
Taylor

MACON DIVISION - 5

Baldwin
Bibb
Bleckley
Butts
Crawford
Dooly
Hancock
Houston

Macon Division Continued

Jasper
Jones
Lamar
Macon
Monroe
Peach
Pulaski
Putnam
Twiggs
Upton
Washington
Wilcox
Wilkinson

VALDOSTA - 7

Berrien
Brooks
Clinch
Colquitt
Cook
Echols
Irwin
Lanier
Lowndes
Thomas
Tift

Forms

Please note that members of the Clerk's staff are barred from assisting with the completion of forms. For direct access to bankruptcy forms, refer to the Administrative Office of the United States Court's Forms web page. You may also visit our website at www.gamb.uscourts.gov for links to bankruptcy forms. Click the "Forms" tab for access to Proof of Claim (Official Form B410) and official court forms approved by the Judicial Conference of the United States for use in all Bankruptcy Courts. **Note that proofs of claim can also be filed via the "Electronic Proof of Claim" link (ePOC) on the home page of the court's website.** The "Filing Without an Attorney" tab provides a link to: *Information for Parties Who Have No Attorney*.

Local Forms Approved by the Clerk

Official court forms approved by the Clerk for use in the Middle District of Georgia are listed below and are available on the court's website under the "Forms" tab.

- Pro Se Debtor Statement of Assistance
- LBR 9004 Forms (in MS Word and WordPerfect format)
- Adversary Proceeding Cover Sheet (B1040)
- Chapter 13 Plan – (in fillable pdf version and word version)
- LBR 3015-2
- Notice of Correction of Social Security Number
- Certificate of Mailing Notice of Correction of Social Security Number

- Debtor's Electronic Noticing Request
- Instructions for Saving Viewed Documents
- Debtor's Certificate Re: Hardship Discharge
- Summons and Notice of Pretrial Conference in an Adversary Proceeding - Instructions
- Certificate of Service of Summons in an Adversary Proceeding
- Writ of Execution

Official Forms Available from the Clerk's Office

- Statement of Social Security Number
- Application to Pay Fees in Installments
- Subpoena in an Adversary Proceeding
- Subpoena in a Bankruptcy Case
- Proof of Claim
- Adversary Proceeding Cover Sheet
- Exemplification Certificate

Additionally, the Archive Retrieval Form is available in the Clerk's Office.

Miscellaneous Forms Found in Appendix

- Certification Regarding Request for Expedited Hearing – Appendix A
- Chapter 11 Ballot Summary (by Claim) – Appendix B
- Chapter 11 Ballot Summary (by Class) – Appendix C
- Request to Expedite Appeal – Appendix D
- Affidavit in Support of Request for Entry of Default and Default Judgment – Appendix E
- Final Report and Application for Final Decree -Appendix F
- Final Account – Appendix G
- Final Decree – Appendix H
- Reserved – Appendix I
- Final Disposition Calendar Procedures – Appendix J
- Pro Se Debtor Statement of Assistance – Appendix K
- Notice of Motion – Appendix L
- Notice of Motion to Modify Ch 13 Plan Before Confirmation w/Rescheduled Date – Appendix M
- Notice of Motion to Modify Plan Before Confirmation – Appendix N
- Notice of Objection to Claim – Appendix O
- Notice of Hearing – Appendix P

PACER

a. PACER (Public Access to Court Electronic Records) is available to those interested in accessing the system which allows parties to retrieve electronic case summaries, docket, and claims information. As directed by Congress, the Judicial Conference has determined that a per page access fee is necessary to reimburse expenses incurred by the judiciary in providing electronic public access to court records.

b. You can search for bankruptcy case information by the participant's name, case number, social security number, or tax identification number. Once the desired case is located, basic case information and a listing of the case docket entries are available. The progress of a case can be easily tracked.

c. Our court is a NextGen CM/ECF court which means that in order to file documents/pleadings electronically with our court, an upgraded PACER account must be linked to a CM/ECF account with Georgia

Middle Bankruptcy Court. Instructions for requesting access to file electronically and for linking an existing Georgia Middle Bankruptcy Court CM/ECF account to your upgraded PACER account are on our court's website at www.gamb.uscourts.gov.

d. If you would like to obtain additional information or register for PACER service, please contact the PACER Service Center at the following address:

PACER Service Center
P. O. Box 780549
San Antonio, TX 78278-0549
1-800-676-6856, (210)-301-6440
<http://pacer.psc.uscourts.gov>

e. Computers in the public area of the Clerk's Office in Macon and Columbus may be used without charge to access the court's documents.

MCVCIS

The Multi-Court Voice Case Information System (MCVCIS) allows an individual to access bankruptcy case information by using a touch tone telephone or through voice recognition in English and Spanish. The user can query the court's computer by debtor name, social security number, or case number. Once the desired case is located, basic case information including filing date, chapter, attorney, trustee, judge, and certain deadline information is available. MCVCIS can be reached toll free by dialing 866-222-8029 and following instructions from the telephone system's auto-attendant.

Internet Web Page

The Clerk's Office has established an Internet web page where important and useful information can be found. As mentioned above, some miscellaneous and official forms can be found there. In addition, court calendars, employee telephone extensions, fee schedules, filing checklists, local rules, and statistical data have been included. This web site is a major source of information. The court's web page can be accessed at www.gamb.uscourts.gov.

II. FILING INFORMATION AND REQUIREMENTS:

Administrative Procedures for Filing, Signing and Verifying Pleadings

I Registration for the Electronic Filing System

A. Registration

- (1) Each new attorney, trustee, limited filer, and filing agent filer desiring to file pleadings or other papers electronically must have their own individual updated PACER account and submit their registration through their PACER account.
- (2) Once you are logged into PACER, go to Manage Your Account > Maintenance. Click on Attorney Admissions/E-File Registration or Non-Attorney E-File Registration. Complete the remaining prompts for the registration.
- (3) Once you have submitted the registration, it will be reviewed by the ECF Helpdesk staff. All registrations will receive an email response regarding the status of the registration request.
- (4) If any information changes, for example, the user's mailing address, e-mail address, or other relevant information, the user must update that information through PACER.
- (5) For further information on registering for access, see our NextGen page on the Court's website.
<http://www.gamb.uscourts.gov/USCourts/migration-cmecf-nextgen>

B. Passwords

- (1) All attorneys, trustees, filing agents, and limited use filers are required to use a password to participate in electronic retrieval and filing of pleadings and other papers in accordance with the electronic case filing system. Registration for a login and password is governed by Paragraph I(A).
- (2) No registered filer shall knowingly permit or cause to permit his/her password to be utilized by anyone other than the registered filer's authorized agent.
- (3) No person shall knowingly utilize or cause another person to utilize the password of a registered filer unless that person is an authorized agent of that attorney.

II Filing and Service of Documents

A. Filing

- (1) Documents filed in paper form when allowed under FRBP 5005(a)(2) shall be converted to electronic form by the Clerk's office and the electronic document shall be the official document. Creditor matrices are to be filed in a similar manner, but in text (TXT) format. Information regarding the formatting of orders can be found in II. D. A judicial waiver will be required for attorneys to file documents in hard copy format. If hard copies are submitted without a waiver, the Clerk's Office will "lodge" the document for filing and the attorney will have 14 days to show cause why a waiver was not obtained. After the 14 days with no cause shown, the court will dismiss the matter or if appropriate, strike the hard copy document.
- (2) Entities that file 15 (fifteen) or more proofs of claim during any 12-month period must file the claims electronically or obtain a judicial waiver. If such entities file paper claims without a judicial waiver, the court will consider striking the documents. Attorneys that file claims for themselves, their firms, or on behalf of any other entity must file all claims electronically regardless of number.
- (3) A party to a pending action or an individual or entity that files documents with the Court frequently as determined by the Clerk of Court and who is not represented by an attorney may register as a Filing User in the electronic case filing system. Registration shall be in the form prescribed by the Clerk of Court in the Clerk's Instructions.
- (4) If at any time a filer is unable to access the electronic case filing system due to technical problems, and there is insufficient time to obtain a waiver, the court will accept a paper filing based upon the affidavit of the filer as to the circumstances preventing the electronic filing.

B. Service

- (1) Whenever a pleading or other paper is filed electronically in accordance with these procedures, the electronic case filing system shall automatically generate a notice of electronic filing by electronic means at the time of the docketing.
- (2) Participation in the system shall constitute a request for service and notice by electronic means as provided under FRBP 9036. Participants in the electronic case filing system, agree to receive notice and service by electronic means both from the court and from other system participants, wherever located.
- (3) An attorney filing a pleading or other document electronically resulting in a notice of electronic filing shall be deemed to have served the notice on participants in the Court's system and such service shall be considered the equivalent of service of the pleading or other document by first class mail, postage pre-paid. However, such electronic service will not be entitled to the additional three days under FRBP 9006(f). This form of service applies only to recipients of a notice of service who are registered participants in the electronic case filing system or have agreed in writing with the filer to accept such service in lieu of service by first class mail but shall not apply to service of a motion or a contested matter pursuant to FRBP 9014. The named respondent in a contested matter under FRBP 9014 must receive service by first class mail. If a debtor is the respondent to a motion or contested matter under FRBP 9014, the attorney for debtor can still receive service by electronic means. For all remaining recipients of service or notice, the filing attorney shall serve the pleading or the document upon those recipients in accordance with applicable bankruptcy rules.
- (4) The following language is recommended for registered users of this electronic case filing system for certificate of service purposes:

"The following parties were served by electronic notice:"

(Show the parties to whom service was rendered electronically)

“The following parties were served by standard first-class mail:”

(Show the parties to whom service was rendered by mail)

C. Signatures

- (1) The electronic filing of a petition, pleading, motion, claim, or other paper that would bear a signature of an attorney or unrepresented party who is a registered participant of the electronic case filing system shall constitute the signature of that attorney or unrepresented party for purposes of the application of FRBP 9011 and other applicable rules. The signature indicated on the document submitted for filing must match the identity of the individual registered as the CM/ECF electronic filer.
- (2) All pleadings and documents electronically filed shall contain either a scanned image of a signature as a part of that document, or for registered users, an indication of the name of the filer with their signature represented by “/s/ Jane Doe” in a location where the original signature would have occurred.
- (3) Filing of pleadings, documents, and other papers that require original or verified signatures.
 - a. Electronic filing by registered users. Petitions, lists, schedules, statements, amendments, pleadings, affidavits and other documents that must contain original signatures or that require verification under FRBP 1008 or an unsworn declaration as provided in 28 U.S.C. § 1746 may be filed electronically by attorneys registered in this electronic case filing system. An original copy containing an original signature must be retained by the attorney who files such a petition, pleading, document, or other paper for one (1) year after the closing of the case. If the case is later reopened, the one-year retention period for documents already on file is not extended. However, any new filings as defined herein filed after the case is reopened shall be retained by the attorney who files such a petition, pleading, document, or other paper for one year after the re-closing of the case.
 - b. Filings initially received in paper format. For filings initially received in paper format as allowed under FRBP 5005(a)(2), the court will retain the original documents bearing original signatures of any paper filings where such signatures are a required verification under FRBP 1008 or an unsworn declaration as provided under 28 U.S.C. § 1746 for 6 months after the filing has been converted to an electronic image.
 - c. Receipt of facsimile filings or emailed pleading or document. Only with prior approval, a pleading, complaint, petition, or other document to be filed with the Court may be accepted as timely filed by transmission to the Court by facsimile or email to the appropriate court email inbox at EmergencyFilings@gamb.uscourts.gov. The pleading, complaint, petition or other document to be filed shall be authorized to be received for filing by a judge of this Court, the Clerk of Court, or by the Clerk’s designee. Such authorization shall be obtained prior to the sending of the document and shall be based on a showing of time-critical need and that the filer is unable to gain access to the Court’s Electronic Case Filing System. In the event the filer is a non-attorney, discretion shall be used to determine whether to approve the receipt of the document by facsimile or email. No facsimile or emailed pleading or document shall be accepted or deemed filed without prior approval.
 - d. Approval of Facsimile or Emailed Pleading or Document. The pleading, complaint, petition or other document to be filed shall be authorized to be received for filing by a judge of this Court, the Clerk of Court, or by the Clerk’s designee. Such authorization shall be obtained prior to the sending of the document and shall be based on a showing of time critical need and that the filer is unable to gain access to the Court’s Electronic Case Filing System. In the event the filer is a non-attorney filer, discretion shall be used to determine whether to approve the receipt of the document by facsimile or email.
 - e. Procedure for Filing Facsimile Documents. The facsimile copy sent to the Court shall include (1) a cover sheet that includes a brief statement of the time critical status of the pleading, complaint, petition or other document, (2) the reason the original cannot be filed timely and, (3) the identification of the Court individual authorizing its receipt. This cover sheet shall be filed with the pleading in the electronic case file. The party sending the facsimile document is solely responsible for calling the court to ensure that it is fully and accurately received. The docketing of the document shall reflect that it is a facsimile document, the name of the Court employee who authorized the receipt of the document, and the name of the attorney or other individual who sent the document.

- f. Procedure for Emailing Documents. The email containing the document sent to the Court shall include (1) a brief statement of the reason the filer has requested permission to send the pleading or document by email and, (2) the identification of the Court individual authorizing and/or accepting its receipt. A copy of this email shall be filed with the pleading in the electronic case file. All documents attached to emails and submitted to the court shall be in PDF format. The party sending the emailed document is solely responsible for calling the court to ensure that it is fully and accurately received. The email address to which these emails should be sent is EmergencyFilings@gamb.uscourts.gov. The docketing of the document shall reflect that it is an emailed document, the name of the Court employee who authorized the receipt of the document, and the name of the attorney or other individual who sent the document.
- g. Conversion of the Faxed Documents. The pleading, complaint, petition or other document submitted by facsimile shall be converted to an electronic image by the Court and the electronic image shall be the official record of the document.

D. Orders

- (1) All orders are to be submitted electronically using the court's E-Orders system.
- (2) All orders must conform with the following format requirements:
 - a. The top margin on the **FIRST PAGE** must be **FOUR (4) INCHES**. All other pages of the order will have a top margin of one (1) inch.
 - b. To assist the court in verifying that the entire body of the submitted order has been properly transmitted, the **LAST LINE** in the order must contain the following text: **END OF DOCUMENT**, centered, to indicate the order is complete.
 - c. A line for the date and a signature line for the judge is omitted. All orders will be signed electronically by the judge in the space provided by the top margin on the first page.
 - d. All orders prepared by legal counsel shall indicate the name of the law firm, name of the attorney responsible for the order, mailing address and phone number for the firm and, if desired, the fax number and/or e-mail address. This information shall be included on the order, after the line containing the text **END OF DOCUMENT**.
 - e. If the submitting party wishes to indicate to whom copies of the signed order should be sent, those parties' names and addresses shall be included on the order, after the line containing the text **END OF DOCUMENT**.
 - f. The font used to create orders must be Courier or Times New Roman (regular, bold, italic, and bold italic). Other fonts will not process correctly through the court's noticing center.
 - g. All signatures of consent including those of unregistered users of the electronic case filing system, are to be indicated by putting "/s/ Jane Doe" where the original signature was to have occurred. In accordance with Paragraph II.C(3)a, any original signatures obtained for consent purposes are to be kept on file by the party submitting the order for one (1) year after the closing of the case.

E. Attachments to Pleadings and Proofs of Claim

If a filed document includes exhibits or attachments, then such exhibits or attachments are to be attached to the document submitted for filing. If the filed document is set for a hearing, hard copies of the exhibits or attachments shall be introduced at the hearing for possible admission to the official record.

F. Documents under Seal

A motion to file documents under seal should be filed electronically. The actual documents to be filed under seal can be filed conventionally in paper form or they can be filed electronically, only after the motion is granted. The order of the court authorizing the filing of such documents under seal will be entered electronically by the Clerk. If the sealed document is filed in paper form, a paper copy of the order granting the motion shall be attached to the documents under seal and delivered to the Clerk at the time of the filing of the documents. Please contact the Clerk's office for complete detailed instructions related to filing the sealed documents.

G. Title of Docket Entries

An attorney who electronically files a pleading or other document shall be responsible for designating a docket entry title for the document by using one of the docketing categories prescribed by the court.

H. Correcting Docket Entries

Once a document is submitted and becomes part of the case docket, corrections to the docket may be made only by members of the clerk's staff. If a document or pleading needs to be corrected by the filer, the correction must be made by filing an amended document.

III Public Access to the Electronic Case Filing System Docket

A. Public Access at the Court

Electronic access to the electronic docket and the documents filed in the electronic case filing system is available to the public at no charge at each Office of the Clerk during regular business hours.

B. Internet Access

Although any person can retrieve and review documents in the system and access information from it without charge at the Clerk's Office, electronic access to the electronic case filing system for viewing purposes is otherwise limited to subscribers of the Public Access Court Electronic Records (PACER) System. Information regarding subscribing to PACER is available on the court's website.

C. Conventional Copies and Certified Copies

Conventional copies and certified copies of electronically filed documents may be purchased at the Office of the Clerk. The listing of miscellaneous fees for copying and certification can be found at 28 U.S.C. § 1930.

D. Privacy Provisions

In accordance with the E-Government Act of 2002 and its own policy regarding privacy and public access, the Judicial Conference of the United States at its September 2003 session, promulgated an official Bankruptcy Form (Official Form B121), Statement of Social Security Numbers. This form has been created to satisfy the requirement set forth in FRBP 1007(f) that a debtor must submit a verified statement of his/her social security number along with the debtor's petition.

- (1) With respect to petitions filed by electronic means by the Internet, the debtor's signature declaring under penalty of perjury that information in the petition is true and correct shall apply to the debtor's social security number as filed electronically with the petition.
- (2) With respect to petitions filed as described above, the filing attorney shall retain an original executed copy of Official Form B121 until one year after closing of the case.
- (3) Attorneys shall not file or submit any additional statements or verifications of the debtor's social security number.
- (4) With respect to petitions filed on paper by unrepresented debtors, the debtor shall submit an original Official Form B121 as a separate paper document with the Clerk at the same time the petition is filed. The Clerk shall retain the original Official Form B121 which will not be accessible to parties, the Bar, or the public.

Commencement of Case

A bankruptcy case, voluntary or involuntary, is commenced by filing a petition with the Clerk of the Bankruptcy Court. 11 U.S.C. §301-303; FRBP 1002. In a voluntary case, the debtor shall file with the petition a list containing the name and address of each creditor. In a Chapter 11 case, the petition shall also be accompanied by a list of the 20 largest unsecured creditors. FRBP 1007(d). The filing of the petition marks a point in time from which many events are measured, and the filing or non-filing of the petition may decisively affect rights of creditors and debtors. Normally, even a defective petition is accepted for filing and a deadline is then given for correcting any deficiencies.

District Where Petition Should be Filed

(1) The provisions which specify the judicial district in which a petition must be filed are set forth in 28 U.S.C. § 1408. The statutory provisions relating to the venue of bankruptcy matters are summarized below:

(2) A case may be commenced under Title 11 in the District Court (i.e., Bankruptcy Court) in which:

(A) the domicile, residence, principal place of business in the United States, or principal assets in the United States, of the debtor have been located for the 180 days immediately preceding commencement of the case, or for a longer portion of the 180-day period than the domicile, residence, principal place of business in the United States, or principal assets in the United States, of the debtor were located in any other district; or

(B) a case is pending under Title 11 concerning the debtor's affiliate, general partner, or partnership.

Official Forms Must Be Used

FRBP 9009 prescribes that the Official Forms "shall be observed and used with alterations as may be appropriate." Official Bankruptcy Forms On-Line may be accessed through the court's web site at www.gamb.uscourts.gov.

Petitions Must Be Verified and Signed

The original petition must be verified by the petitioner or contain an unsworn declaration as provided in 28 U.S.C. § 1746, FRBP 1008, and FRBP 9011(c). If the debtor is represented, counsel is required to use the CM/ECF system for filing all petitions and documents.

Types of Cases

- Chapter 7** - Orderly liquidation of debtor's non-exempt assets by a trustee and the equitable distribution of the proceeds to creditors. An involuntary petition is permitted under this chapter. 11 U.S.C. § 303(a).
- Chapter 9** - Allows a municipal unit to continue to operate while it adjusts or refinances creditors' claims with minimum loss to its creditors. An involuntary petition is not permitted under this chapter. 11 U.S.C. § 303(a).
- Chapter 11** - Business reorganization which permits a debtor to restructure its finances so that it may continue to operate, provide its employees with jobs, pay its creditors, and produce a return for its stockholders. Individuals may also file a petition under Chapter 11 to work out a resolution of debt. Chapter 11 can also be used as a method of liquidation through a plan. An involuntary petition is permitted under this chapter. 11 U.S.C. § 303(a).

Chapter 12 - Adjustment of debts of a family farmer or family fisherman with a regular annual income. 11 U.S.C. § 109(f). It is designed to meet the needs of the family farmer or family fisherman while preserving the rights of lenders. The total debts (secured and unsecured) of the operation must not exceed \$4,153,150 (if a farming operation) or \$1,924,550 (if a commercial fishing operation), and there are detailed restrictions on the nature of the debt. 11 U.S.C. § 101(18). An involuntary petition is not permitted under Chapter 12. 11 U.S.C. § 303(a).

Chapter 13 - Adjustment of debts of an individual with regular income. This chapter is available only to an individual and spouse. It may, however, include business debts of such individuals. Chapter 13 is limited to individuals whose unsecured debts are less than \$394,725 and secured debts are less than \$1,184,200. 11 U.S.C. § 109(e). These amounts are adjusted periodically to reflect changes in the consumer price index. A corporation or partnership may not be a chapter 13. An involuntary petition is not permitted under Chapter 13. 11 U.S.C. § 303(a).

Chapter 15 The purpose of Chapter 15 is to provide effective mechanisms for dealing with insolvency cases involving debtors, assets, claimants, and other parties of interest involving more than one country.

Multiple Entities as Debtor

The clear implication of 11 U.S.C. §§ 301, 302 is that only one entity may be a debtor in one case, except for spouses filing jointly. Thus, a petition captioned as:

**John J. Jones
Jones & Sons, Inc.**

is not valid, at least in terms of having effectively commenced a case as to both the individual and the corporation.

Joint Cases

A joint case may be filed by debtor and debtor's spouse under each chapter by filing a single petition. 11 U.S.C. § 302. Note, however, that a spouse cannot be added by amendment after the case is filed. A separate case must be filed by the spouse in this instance, and the full filing fee paid. A joint voluntary case does not require the payment of two filing fees, however an involuntary petition against both spouses does require the filing of two separate petitions and the payment of two filing fees.

Order for Relief

In a voluntary case, the filing of the petition constitutes an order for relief. 11 U.S.C. § 301. Thus, no actual "Order for Relief" is entered. In an involuntary case, however, an actual order for relief is entered when either: (a) the petition is not timely controverted; or (b) the statutory grounds for entry of the order are established after trial. 11 U.S.C. § 303(h).

Filing a Voluntary Case

(1) Visit our Court's website at www.gamb.uscourts.gov for links to bankruptcy forms. The red tab entitled: Filing Without an Attorney provides information for pro se debtors.

(2) In a Chapter 7, 11, 12, and 13 case, the following documents are required and must be filed with the petition unless a later time is specified.

Required Lists, Schedules, Statements and Fees

Refer to the United States Bankruptcy Court required lists, schedules, statements, and fees (Form B2000) below for a detailed list for each chapter. Requirements for adversary proceedings are shown as well.

Dollar amounts listed below are subject to change by the Judicial Conference of the United States.

(1) **Chapter 7 Case**

☐ **Filing Fee of \$245.** If the fee is to be paid in installments or the debtor requests a waiver of the fee, the debtor must be an individual and must file a signed application for court approval. Official Form 103A or 103B and FRBP 1006(b), (c).

☐ **Administrative fee of \$78 and trustee surcharge of \$15.** If the debtor is an individual and the court grants the debtor's request, these fees are payable in installments or may be waived.

☐ **Voluntary Petition for Individuals Filing for Bankruptcy** (Official Form 101) or **Voluntary Petition for Non-Individuals Filing for Bankruptcy** (Official Form 201); **Names and addresses of all creditors** of the debtor. Must be filed WITH the petition. FRBP 1007(a)(1).

☐ **Notice to Individual Debtor with Primarily Consumer Debts** under 11 U.S.C. § 342(b) (Director's Form 2010), if applicable. Required if the debtor is an individual with primarily consumer debts. The notice must be GIVEN to the debtor before the petition is filed. Certification that the notice has been given must be FILED with the petition or within 15 days. 11 U.S.C. §§ 342(b), 521(a)(1)(B)(iii), 707(a)(3). Official Form 101 contains spaces for the certification.

☐ **Bankruptcy Petition Preparer's Notice, Declaration, and Signature** (Official Form 119). Required if a "bankruptcy petition preparer" prepares the petition. Must be submitted WITH the petition. 11 U.S.C. § 110(b)(2).

☐ **Statement About Your Social Security Numbers** (Official Form 121). Required if the debtor is an individual. Must be submitted WITH the petition. FRBP 1007(f).

☐ **Credit Counseling Requirement** (Official Form 101); **Certificate of Credit Counseling and Debt Repayment Plan**, if applicable; **§ 109(h)(3) certification or § 109(h)(4) request**, if applicable. If applicable, the Certificate of Credit Counseling and Debt Repayment Plan must be filed with the petition or within 14 days. If applicable, the § 109(h)(3) certification or the § 109(h)(4) request must be filed WITH the petition. FRBP1007(b)(3), (c).

☐ **Statement disclosing compensation paid or to be paid to a "bankruptcy petition preparer"** (Director's Form 2800). Required if a "bankruptcy petition preparer" prepares the petition. Must be submitted WITH the petition. 11 U.S.C. § 110(h)(2).

☐ **Statement of Your Current Monthly Income** (Official Form 122A). Required if the debtor is an individual. Must be filed with the petition or within 14 days. FRBP 1007(b), (c).

☐ **Schedules of assets and liabilities** (Official Forms 106 or 206). Must be filed with the petition or within 14 days. FRBP 1007(b),(c).

☐ **Schedule of Executory Contracts and Unexpired Leases** (Schedule G of Official Form 106 or 206). Must be filed with the petition or within 14 days. FRBP 1007(b), (c).

☐ **Schedules of Your Income and Your Expenses** (Schedules I and J of Official Form 106). If the debtor is an individual, Schedules I and J of Official Form 106 must be filed with the petition or within 14 days. 11 U.S.C. § 521(1) and FRBP 1007(b), (c).

☐ **Statement of financial affairs** (Official Form 107 or 207). Must be filed with the petition or within 14 days. FRBP 1007(b), (c).

☐ **Copies of all payment advices or other evidence of payment** received by the debtor from any employer within 60 days before the filing of the petition. Required if the debtor is an individual. Must be filed with the petition or within 14 days. FRBP 1007(b), (c).

☐ **Statement of Intention for Individuals Filing Under Chapter 7** (Official Form 108). Required ONLY if the debtor is an individual and the schedules of assets and liabilities contain debts secured by property of the estate or personal property subject to an unexpired lease. Must be filed within 30 days or by the date set for the Section 341 meeting of creditors, whichever is earlier. 11 U.S.C. §§ 362(h) and 521(a)(2).

☐ **Statement disclosing compensation paid or to be paid to the attorney** for the debtor (Director's Form 2030). Required if the debtor is represented by an attorney. Must be filed within 14 days or any other date set by the court. 11 U.S.C. § 329 and FRBP 2016(b).

☐ **Financial Management Course Certificate (Certificate of Debtor Education)**. Required if the debtor is an individual filing under chapter 7, 11 or 13. Debtor must complete an approved financial management course in order to receive a discharge. Failure to file the certificate may result in the case being closed without an entry of discharge. In joint cases, each debtor is required to complete an approved financial management course and file the Certificate with the Court. Must be filed within 45 days of the first date set for the meeting of creditors. 11 U.S.C. § 727(a)(11) and FRBP 1007(b)(7), (c).

(2) Chapter 11 Case

☐ **Filing fee of \$1,167**. If the fee is to be paid in installments, the debtor must be an individual and must file a signed application for court approval. Official Form 103A and FRBP 1006(b).

☐ **Administrative fee of \$571**. If the debtor is an individual and the court grants the debtor's request, this fee is payable in installments.

☐ **United States Trustee quarterly fee**. The debtor, or trustee if one is appointed, is required also to pay a fee to the United States trustee at the conclusion of each calendar quarter until the case is dismissed or converted to another chapter. The calculation of the amount to be paid is set out in 28 U.S.C. § 1930(a)(6). As authorized by 28 U.S.C. § 1930(a)(7), the quarterly fee is paid to the clerk of court in chapter 11 cases in Alabama and North Carolina.

☐ **Voluntary Petition for Individuals Filing for Bankruptcy** (Official Form 101) or **Voluntary Petition for Non-Individuals Filing for Bankruptcy** (Official Form 201); **Names and addresses of all creditors** of the debtor. Must be filed WITH the petition. FRBP 1007(a)(1).

☐ **Notice to Individual Debtor with Primarily Consumer Debts** under 11 U.S.C. § 342(b) (Director's Form 2010), if applicable. Required if the debtor is an individual with primarily consumer debts. The notice must be GIVEN to the debtor before the petition is filed. Certification that the notice has been given must be FILED with the petition or within 15 days. 11 U.S.C. §§ 342(b), 521(a)(1)(B)(iii), 1112(e). Official Form 101 contains spaces for the certification.

☐ **Bankruptcy Petition Preparer's Notice, Declaration, and Signature** (Official Form 119). Required if a "bankruptcy petition preparer" prepares the petition. Must be submitted WITH the petition. 11 U.S.C. § 110(b)(2).

☐ **Statement About Your Social Security Numbers** (Official Form 121). Required if the debtor is an individual. Must be submitted WITH the petition. FRBP 1007(f).

☐ **Credit Counseling Requirement** (Official Form 101); **Certificate of Credit Counseling and Debt Repayment Plan**, if applicable; **§ 109(h)(3) certification or § 109(h)(4) request**, if applicable. If applicable, the Certificate of Credit Counseling and Debt Repayment Plan must be filed with the petition or within 14 days. If applicable, the § 109(h)(3) certification or the § 109(h)(4) request must be filed WITH the petition. FRBP 1007(b)(3), (c).

☐ **Statement disclosing compensation paid or to be paid to a "bankruptcy petition preparer"** (Director's Form 2800). Required if a "bankruptcy petition preparer" prepares the petition. Must be submitted WITH the petition. 11 U.S.C. § 110(h)(2).

☐ **Statement of Your Current Monthly Income** (Official Form 122B). Required if the debtor is an individual. Must be filed with the petition or within 14 days. FRBP 1007(b), (c).

☐ **For Individual Chapter 11 Cases: List of Creditors Who Have the 20 Largest Unsecured Claims Against You and Are Not Insiders** (Official Form 104) or **Chapter 11 or Chapter 9 Cases: List of Creditors Who Have the 20 Largest Unsecured Claims and Are Not Insiders** (Official Form 204). Must be filed WITH the petition. FRBP 1007(d).

☐ **Names and addresses of equity security holders of the debtor.** Must be filed with the petition or within 14 days, unless the court orders otherwise. FRBP 1007(a)(3).

☐ **Schedules of Assets and Liabilities** (Official Form 106 or 206). Must be filed with the petition or within 14 days. FRBP 1007(b), (c).

☐ **Schedule of Executory Contracts and Unexpired Leases** (Schedule G of Official Form 106 or 206). Must be filed with the petition or within 14 days. FRBP 1007(b), (c).

☐ **Schedules of Current Income and Expenditures.** If the debtor is an individual, Schedules I and J of Official Form 106 must be used for this purpose. Must be filed with the petition or within 14 days. 11 U.S.C. § 521(1) and FRBP 1007(b), (c).

☐ **Statement of Financial Affairs** (Official Form 107 or 207). Must be filed with the petition or within 14 days. FRBP 1007(b), (c).

☐ **Copies of all payment advices or other evidence of payment** received by debtor from any employer within 60 days before the filing of the petition. Required if the debtor is an individual. Must be filed WITH the petition or within 14 days. FRBP 1007(b), (c).

☐ **Statement disclosing compensation paid or to be paid to the attorney** for the debtor (Director's Form 2030), if applicable. Required if the debtor is represented by an attorney. Must be filed within 14 days or any other date set by the court. 11 U.S.C. § 329 and FRBP 2016(b).

☐ **Financial Management Course Certificate (Certificate of Debtor Education)**. Required if the debtor is an individual filing under chapter 7, 11 or 13. Debtor must complete an approved financial management course in order to receive a discharge. Failure to file the certificate may result in the case being closed without an entry of discharge. In joint cases, each debtor is required to complete an approved financial management course and file the Certificate with the Court. Must be filed no later than the date of the last payment under the plan or the filing of a motion for a discharge under 11 U.S.C. § 1141(d)(5)(B). 11 U.S.C. § 1141(d)(3) and FRBP 1007(b)(7), (c).

☐ **Statement concerning pending proceedings of the kind described in § 522(q)(1)**, if applicable. Required if the debtor is an individual and has claimed exemptions under state or local law as described in § 522(b)(3) in excess of \$214,000. Must be filed no later than the date of the last payment made under the plan or the date of the filing of a motion for a discharge under 11 U.S.C. § 1141(d)(5)(B). 11 U.S.C. § 1141(d)(5)(C) and FRBP 1007(b)(8), (c).

(3) **Chapter 12 Case**

☐ **Filing Fee of \$200**. If the fee is to be paid in installments, the debtor must be an individual and must file a signed application for court approval. Official Form 103A and FRBP 1006(b).

☐ **Administrative fee of \$78**. If the debtor is an individual and the court grants the debtor's request, this fee is payable in installments.

☐ **Voluntary Petition for Individuals Filing for Bankruptcy** (Official Form 101) or **Voluntary Petition for Non-Individuals Filing for Bankruptcy** (Official Form 201). **Names and addresses of all creditors** of the debtor. Must be filed WITH the petition. FRBP 1007(a)(1).

☐ **Notice to Individual Debtor with Primarily Consumer Debts** under 11 U.S.C. § 342(b) (Director's Form 2010), if applicable. Required if the debtor is an individual with primarily consumer debts. The notice must be GIVEN to the debtor before the petition is filed. Certification that the notice has been given must be FILED with the court in a timely manner. 11 U.S.C. §§ 342(b), 521(a)(1)(B)(iii). Official Form 101 contains spaces for the certification.

☐ **Bankruptcy Petition Preparer's Notice, Declaration, and Signature** (Official Form 119). Required if a "bankruptcy petition preparer" prepares the petition. Must be submitted WITH the petition. 11 U.S.C. § 110(b)(2).

☐ **Statement of Your Social Security Numbers** (Official Form 121). Required if the debtor is an individual. Must be submitted WITH the petition. FRBP 1007(f).

☐ **Credit Counseling Requirement** (Official Form 101); **Certificate of Credit Counseling and Debt Repayment Plan**, if applicable; **§ 109(h)(3) certification or § 109(h)(4) request**, if applicable. If applicable, the Certificate of Credit Counseling and Debt Repayment Plan must be filed with the petition or within 14 days. If applicable, the § 109(h)(3) certification or the § 109(h)(4) request must be filed WITH the petition. FRBP 1007(b)(3), (c).

☐ **Statement disclosing compensation paid or to be paid to a "bankruptcy petition preparer"** (Director's Form 2800). Required if a "bankruptcy petition preparer" prepares the petition. Must be submitted WITH the petition. 11 U.S.C. § 110(h)(2).

- ☐ **Schedules of Assets and Liabilities** (Official Form 106 or 206). Must be filed with the petition or within 14 days. Fed.R. Bankr.P. 1007(b), (c).
- ☐ **Schedule of Executory Contracts and Unexpired Leases** (Schedule G of Official Form 106 or 206). Must be filed with the petition or within 14 days. Fed.R. Bankr.P. 1007(b), (c).
- ☐ **Schedules of Current Income and Expenditures.** If the debtor is an individual, Schedule I and J of Official Form 106 must be used for this purpose. Must be filed with the petition or within 14 days. 11 U.S.C. § 521(1) and FRBP 1007(b), (c).
- ☐ **Statement of Financial Affairs** (Official Form 107 or 207). Must be filed with the petition or within 14 days. FRBP 1007(b), (c).
- ☐ **Copies of all payment advices** or other evidence of payment received by the debtor from any employer within 60 days before the filing of the petition if the debtor is an individual. Must be filed with the petition or within 14 days. FRBP 1007(b), (c).
- ☐ **Statement disclosing compensation paid or to be paid to the attorney** for the debtor (Director's Form 2030), if applicable. Must be filed within 14 days or any other date set by the court. 11 U.S.C. § 329 and FRBP 2016(b).
- ☐ **Chapter 12 Plan.** Must be filed within 90 days. 11 U.S.C. § 1221.
- ☐ **Statement concerning pending proceedings of the kind described in 11 U.S.C. § 522(q)(1),** if applicable. Required if the debtor is an individual and has claimed exemptions under state or local law as described in §522(b)(3) in excess of \$214,000. Must be filed no later than the date of the last payment made under the plan or the date of the filing of a motion for a discharge under 11 U.S.C. § 1228(b). 11 U.S.C. § 1228(f) and FRBP 1007(b)(8), (c).

(4) **Chapter 13 Case**

- ☐ **Filing fee of \$235.** If the fee is to be paid in installments, the debtor must file a signed application for court approval. Official Form 103A and FRBP 1006(b).
- ☐ **Administrative fee of \$78.** If the court grants the debtor's request, this fee is payable in installments.
- ☐ **Voluntary Petition for Individuals Filing for Bankruptcy** (Official Form 101). **Names and addresses of all creditors** of the debtor. Must be filed WITH the petition. FRBP 1007(a)(1).
- ☐ **Notice to Individual Debtor with Primarily Consumer Debts** under 11 U.S.C. § 342(b) (Director's Form 2010), if applicable. Required if the debtor is an individual with primarily consumer debts. The notice must be GIVEN to the debtor before the petition is filed. Certification that the notice has been given must be FILED with the petition or within 15 days. 11 U.S.C. §§ 342(b), 521(a)(1)(B)(iii), 1307(c)(9). Official Form 101 contains spaces for the certification.
- ☐ **Bankruptcy Petition Preparer's Notice, Declaration, and Signature** (Official Form 119). Required if a "bankruptcy petition preparer" prepares the petition. Must be submitted WITH the petition. 11 U.S.C. § 110(b)(2).
- ☐ **Statement of Social Security Number** (Official Form 121). Must be submitted WITH the petition. FRBP 1007(f).

☐ **Credit Counseling Requirement** (Official Form 101); **Certificate of Credit Counseling and Debt Repayment Plan**, if applicable; **§ 109(h)(3) certification or § 109(h)(4) request**, if applicable. If applicable, the Certificate of Credit Counseling and Debt Repayment Plan must be filed with the petition or within 14 days. If applicable, the § 109(h)(3) certification or the § 109(h)(4) request must be filed WITH the petition. FRBP 1007(b)(3), (c).

☐ **Statement disclosing compensation paid or to be paid to a “bankruptcy petition preparer”** (Director's Form 2800). Required if a “bankruptcy petition preparer” prepares the petition. Must be submitted WITH the petition. 11 U.S.C. §110(h)(2).

☐ **Statement of Your Current Monthly Income** (Official Form 122C). Must be filed with the petition or within 14 days. FRBP 1007.

☐ **Schedules of Assets and Liabilities** (Official Form 106). Must be filed with the petition or within 14 days. FRBP 1007(b), (c).

☐ **Schedule of Executory Contracts and Unexpired Leases** (Schedule G of Official Form 106). Must be filed with the petition or within 14 days. FRBP 1007(b), (c).

☐ **Schedules of Current Income and Expenditures** (Schedules I and J of Official Form 106). Must be filed with the petition or within 14 days. 11 U.S.C. § 521(1) and FRBP 1007(b), (c).

☐ **Statement of Financial Affairs** (Official Form 107). Must be filed with the petition or within 14 days. FRBP 1007(b), (c).

☐ **Copies of all payment advices or other evidence of payment** received by the debtor from any employer within 60 days before the filing of the petition. Must be filed with the petition or within 14 days. FRBP 1007(b), (c).

☐ **Chapter 13 Plan**. (Official Form 113), or local form plan (check with your local court for required plan version). Fed.R.Bankr.P 3015.1. Must be filed with the petition or within 14 days. FRBP 3015.

☐ **Statement disclosing compensation paid or to be paid to the attorney** for the debtor (Director’s Form 2030), if applicable. Must be filed within 14 days or any other date set by the court. 11 U.S.C. § 329 and FRBP 2016(b).

☐ **Financial Management Course Certificate (Certificate of Debtor Education)**. Required if the debtor is an individual filing under chapter 7, 11 or 13. Debtor must complete an approved financial management course in order to receive a discharge. Failure to file the certificate may result in the case being closed without an entry of discharge. In joint cases, each debtor is required to complete an approved financial management course and file the Certificate with the Court. Must be filed no later than the date of the last payment made under the plan or the date of the filing of a motion for a discharge under 11 U.S.C. § 1328(b), 11 U.S.C. § 1328(g)(1) and FRBP 1007(b)(7), (c).

☐ **Statement concerning pending proceedings of the kind described in 11 U.S.C. § 522(q)(1)**, if applicable. Required if the debtor has claimed exemptions under state or local law as described in §522(b)(3) in excess of \$214,000. Must be filed no later than the date of the last payment made under the plan or the date of the filing of a motion for a discharge under 11 U.S.C. § 1328(b). 11 U.S.C. § 1328(h) and FRBP 1007(b)(8), (c).

(5) Adversary Proceeding

Filing Fee of \$350.00

-No charge to U.S. Agency or Debtor

- No charge to Trustee or Debtor in Possession if an estate DOES NOT exist
- No charge to CSRU or representative with affidavit or other proper documentation

Adversary Cover Sheet if complaint is not filed electronically (Form 1040)

Adversary Complaint (Form 416)

Summons and Notice of Pretrial Conference in an Adversary

(6) Order of Bankruptcy Documents

When a bankruptcy case is not filed electronically, the petition and accompanying documents shall be organized in the following order with exceptions as noted:

- Voluntary Petition
- Chapter 13 Plan (only in Chapter 13 cases)
- Attorney's Disclosure of Compensation
- Statement About Your Social Security Numbers - (for individual debtors only)
- Application for Individuals to Pay the Filing Fee in Installments (only when fee is to be paid in installments)
 - Proposed Order RE: Application to Pay the Filing Fee in Installments
- List of Creditors
- List of Creditors Who Have the 20 Largest Unsecured Claims (only in Chapter 11 cases)
- Schedules
 - Summary
 - Schedule A/B - Property
 - Schedule C - The Property You Claim as Exempt
 - Schedule D - Creditors Who Hold Claims Secured By Property
 - Schedule E/F - Creditors Who Have Unsecured Claims
 - Schedule G - Executory Contracts and Unexpired Leases
 - Schedule H - Your Codebtors
 - Schedule I - Your Income (Individual Debtor(s))
 - Schedule J - Your Expenses (Individual Debtor(s))
 - Declaration
 - Statement of Your Financial Affairs
 - Statement of Your Current Monthly Income and Means Test Calculation
- Certificate of Credit Counseling
- Statement of Intention for Individuals Filing Under Chapter 7 (With petition or within 30 days of filing or by the Meeting of Creditors, whichever is earlier) 11 U.S.C. § 521(A).
- Notice Required by 11 U.S.C. § 342(b) for Individuals Filing for Bankruptcy
- Creditor Matrix - see LBR 1007-2

If petition is accompanied by a list of creditors and their addresses, the schedules and statement of affairs must be filed within 14 days. FRBP 1007. Chapter 13 Plan and the Statement of Attorney's Fees must be filed with petition or within 14 days. FRBP 3015(b) and FRBP 2016(b).

Filing an Involuntary Petition

(1) Involuntary Petitions may be filed in Chapter 7 or Chapter 11 cases. The filing fee must accompany the petition. Upon filing, the Clerk will issue a summons to be served by the petitioner.

(2) If an order for relief is entered, the debtor shall file within 14 days, the following documents in the following order:

- Attorney's Disclosure of Compensation
- List of Creditors
- List of Creditors Who Have the 20 Largest Unsecured Claims (Only in Chapter 11 cases)
- Schedules
- Summary
- Schedule A/B Property
- Schedule C The Property You Claim as Exempt (individuals)
- Schedule D Creditors Who Hold Claims Secured By Property
- Schedule E/F Creditors Who Have Unsecured Claims
- Schedule G Executory Contracts and Unexpired Leases
- Schedule H Your Codebtors
- Schedule I Your Income of Individual Debtor(s)
- Schedule J Your Expenses
- Declaration
- Statement of Your Financial Affairs
- Statement of Intention for Individuals Filing Under Chapter 7 (only in Chapter 7 cases)
- Creditor Matrix see LBR 1007-2

Filing Fees Required

The petition must be accompanied by a filing fee or an application to pay fees in installments. Payment of filing fees in installments is permitted only for voluntary petitions filed by an individual. The number of installments proposed by the petitioner must not exceed four (4), with the final installment to be paid not later than 120 days after filing. FRBP 1006(b). The application to pay in installments must specify the dates of the proposed payment schedule.

(See Website www.gamb.uscourts.gov for Fee Schedule)

Form of Payment

(1) **Filers who are not registered users of the court's electronic filing system** shall remit fees in the form specified as follows:

- (A) Money Order
- (B) Certified check drawn on a bank which is a member of the Federal Reserve System
- (C) Check drawn upon the account of an attorney or other entity whose check is acceptable to the Clerk.
- (D) The Court's online payment portal using a debit card, PayPal, or ACH.

(2) All checks or money orders must be payable to the **Clerk, United States Bankruptcy Court**. A check or money order should not be payable to an individual court employee's name. Personal checks are not accepted.

(3) **Registered users of the court's electronic filing system** shall pay all filing fees through the Pay.Gov system as set out below.

(A) On-Line payments are designed to allow filers to pay fees interactively as part of the electronic filing process. Attorneys and trustees can choose to pay after each transaction, or they can simply make one payment at the end of the day for all transactions requiring fees. The Clerk's Office for the Bankruptcy

Court, Middle District of GA encourages the practice of one payment at the end of the day for all transactions. Payments made by the end of the day must be posted no later than 11:00 p.m.

System Security Requirements

Your browser should be updated with all current security patches.

Fee Payment When Opening A New Bankruptcy Case

(1) The CM/ECF on-line payment functions can accommodate both new cases that are to be paid in full, and those that are to be paid in installments.

(2) **IMPORTANT NOTE FOR INSTALLMENT PAYMENT CASES** - When opening your installment payment case, you **MUST** select **INSTALLMENT** in the statistical information in order to receive the option of modifying the filing fee to the amount you will be paying with the filing of the case. *CM/ECF will always default to Paid and insert the full filing fee amount for the new case unless the filer indicates otherwise.*

Prior filing within last 8 years	no ▾
Fee status	Installment ▾
Nature of debt	consumer ▾
Asset notice	No ▾
Estimated number of creditors	1 - 49 ▾
Estimated assets	\$0 to \$50,000 (\$0 to \$10,000) ▾
Estimated liabilities	\$0 to \$50,000 (\$0 to \$50,000) ▾

Type of debtor

- ☒ Individual
- ☐ Corporation (includes LLC & LLP)
- ☐ Partnership
- ☐ Other

Nature of business

- ☐ Health Care Business
- ☐ Single Asset Real Estate
- ☐ Railroad
- ☐ Stockbroker
- ☐ Commodity Broker
- ☐ Clearing Bank
- ☐ None of the above

Note: The filing fee shown in the illustrations below may differ from the actual current filing fee related to the example.

(3) At some point during the filing of your document, you will see the screen below. Do not make any changes to this screen if the filing fee is to be paid in full. If you are paying the filing fee in installments, change the fee amount as appropriate.

All Petitions Paid in Installments Must be Accompanied by An Application To Pay Filing Fees in Installments.

LEAVE THE RECEIPT NUMBER BLANK IF YOU WILL BE PAYING VIA THE INTERNET!

Receipt #: Fee: \$

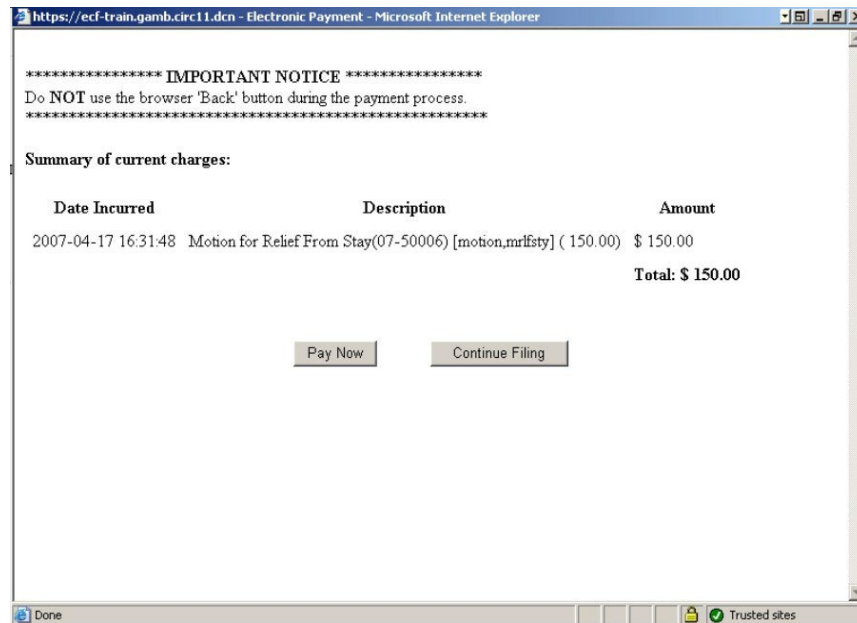
(4) When the final confirmation screen appears, if the dollar amount listed is incorrect, press the back button and make changes, then resubmit.

Docket Text: Final Text

Chapter 7 Voluntary Petition for Individuals. All schedules and statements have been filed. Fee Amount \$100 filed by Angela James

Attention!! Submitting this screen commits this transaction. You will have no further opportunity to modify this submission if you continue.

(5) At the end of your transaction, you will receive a list of all documents where fees remain unpaid. If you have more cases or pleadings requiring fees to file, select **Continue Filing**.



(6) IF YOU CONTINUE FILING, you will receive an opportunity to Pay Now after each transaction or you may pay at the end of the day (11:00 P.M.) using the Utilities Menu option, Internet Payments Due. If you are ready to pay outstanding fees now, select Pay Now.

(7) NOTE: IF YOU DETECT AN ERROR on the summary of current charges screen, **DO NOT** select the Pay Now option. Contact the court so the error can be corrected before an incorrect charge is made to your account. [Contact the Financial Deputy Clerk at 478-749-6844 or Chief Deputy Clerk at 478-749-6831]

(8) DO NOT USE THE BROWSER “BACK” BUTTON DURING THE PAYMENT PROCESS.

(9) When the Pay Now option is chosen, you will be electronically connected to PACER. You can use the payment method that is stored in your PACER account or you can change the payment method to a different credit card or an ACH payment as indicated in the screen below.

Account Number	[REDACTED]
Username	[REDACTED]
Account Balance	\$0.00
Case Search Status	Active
Account Type	Upgraded PACER Account

Pay Filing Fee for Georgia Middle Bankruptcy Court (test)

* Required Information

Payment Amount

Amount Due ***\$188.00**

Select a Payment Method

☒ 

John Doe
XXXXXXXXXXXX1111
01/2040

☐ Enter a credit card

☐ Enter an ACH account

Note: We protect the security of your information during transmission using Secure Sockets Layer (SSL) software, which encrypts information you submit.

Next

Cancel

(10) If you enter an invalid credit card number the following message will appear: “The card number you have entered is invalid. Please try again.” Make corrections. Then click “Continue with Plastic Card Payment”.

(11) The next screen requires you to authorize the transaction. **Note: Address Information** - will be displayed on the screen. This information will be filled with the address information currently on file with PACER. **E-Mail Confirmation** - is another convenient way to receive confirmation of payment. On the authorization screen you have the option of entering additional e-mail addresses to receive confirmation of the payment. E-mail addresses added on this screen will not affect the e-mail address on file in CM/ECF with the court.

The system will display a checkbox that **must** be selected to authorize the payment. Click the [Submit] button.

Account Number	[REDACTED]
Username	[REDACTED]
Account Balance	\$0.00
Case Search Status	Active
Account Type	Upgraded PACER Account

Pay Filing Fee for Georgia Middle Bankruptcy Court (test)

Payment Summary

Payment Method	Payment Details				
 XXXXXXXXXXXX1111 01/2040 John Doe 123 USBC Lane Macon, GA 31201 USA	<table><tr><td>Payment Amount</td><td>\$188.00</td></tr><tr><td>Fee Type</td><td>Filing Fee</td></tr></table>	Payment Amount	\$188.00	Fee Type	Filing Fee
Payment Amount	\$188.00				
Fee Type	Filing Fee				

Email Receipt

Email	gambcsoj[REDACTED]@gmail.com
Confirm Email	gambcsoj[REDACTED]@gmail.com
Additional Email Addresses	

Authorization

☒ I authorize a charge to my credit card for the amount above in accordance with my card issuer agreement. *

Note: We protect the security of your information during transmission using Secure Sockets Layer (SSL) software, which encrypts information you submit.

(12) When the transaction is approved, a receipt will be posted to the case(s) that have been paid, and the following message will appear:

Thank you. Your transaction in the amount of **\$ 188.00** has been completed.

Please [print a copy of](#) your transaction receipt for future reference. The transaction number is **A214710**.

Detail description:

Motion for Relief From Stay([REDACTED]) [motion,mrlfsty] (188.00)

(13) **Receipt Printing** - is available. Once the payment is made and a receipt is generated, you will have the option to print the receipt. Click on the “[print a copy of](#)” in the second sentence.

Fee Payment with Motions Requiring Fees

The CM/ECF payment module works similarly for motions and pleadings that require fees, except that the full filing fee is required. From the main Bankruptcy menu, select the type of motion you wish to file and follow your filing instructions as for any other document. If a fee is required, you will be given the opportunity to “Pay Now” or “Continue Filing.” Make your choice and follow the instructions given above in paying your filing fees.

Reports Related to Internet Payments

(1) The options shown below which are available to attorneys and trustees can be located by clicking on the Utilities menu option in CM/ECF. Internet Payment History and Internet Payments Due are described below for you,

Utilities

Your Account

[Change Your Password](#)
[Clear Default PACER Login](#)
[Edit Shortcut Bar](#)
[Internet Payment History](#)
[Internet Payments Due](#)
[Maintain Your ECF Account](#)
[RSS Feeds](#)
[View Your Transaction Log](#)

Edit Data

[Edit Claims](#)

Miscellaneous

[Mailings...](#)
[Check PDF Document](#)
[Verify a Document](#)
[Internet Fees/Payments...](#)
[Court Information](#)

(2) **INTERNET PAYMENT HISTORY** - This report allows attorneys and trustees who have U.S. Treasury Internet payment privileges to review completed credit card payments over any specified time period. The report allows users to display fee payments over a date range specified. The default for this report is set for the previous 30 days. You may change the date range and “Run Report.”

The screenshot shows a web browser window titled "GAMB CM/ECF Training Database - Microsoft Internet Explorer". The address bar shows "https://ecf-train.gamb.circ11.dcn/cgi-bin/login.pl?134975086091539-L_565_0-1". The page has a blue header with navigation links: "Train", "Bankruptcy", "Adversary", "Query", "Reports", "Utilities", and "Logout". Below the header, the title "Internet Payment History" is displayed. The form contains two date input fields: "From" with the value "3/17/2007" and "to" with the value "4/17/2007". Below these fields are two buttons: "Run Report" and "Clear".

(3) The following illustration shows what the resulting report may resemble.

The screenshot shows the same web browser window, but now displaying the results of the report. The title is "U.S. Bankruptcy Court Middle District of Georgia Internet Payment History for Attorney , Ann A. 3/17/2007 to 4/17/2007". Below the title is a table with the following data:

Date Paid	Description	Payment Method	Receipt #	Amount
2007-04-17 14:10:16	Voluntary Petition (Chapter 7)(05-70004) [misc,volp7] (40.00)			
	Motion for Relief From Stay(05-70004) [motion,mrlfsty] (150.00)			

(4) INTERNET PAYMENTS DUE - The Internet Payments Due report allows an attorney with internet payment privileges to immediately pay all outstanding fees without docketing another pleading or opening a case. There are no selection screens or sort options offered. The report displays each outstanding fee. This screen will contain a summary of all current charges which remain unpaid. Use the checkbox to select the fees you wish to pay or use the Select All button, click next. A payment window will appear on the screen, click pay now and complete the payment process as previously instructed.

Internet Payments Due

Select all

Check Fees to Pay	Date Incurred	Description	Amount
☐	2021-11-08 09:05:22	Voluntary Petition (Chapter 13)(31-50043) [misc,volp13] (313.00)	\$ 313.00
☐	2021-11-08 09:05:22	Voluntary Petition (Chapter 7)(21-50044) [misc,volp7] (338.00)	\$ 338.00
☐	2021-08-03 16:08:42	Voluntary Petition (Chapter 13)(21-50000) [misc,volp13] (100.00)	\$ 100.00

Next

Clear

NOTE: ALL FEES INCURRED DURING EACH DAY MUST BE PAID BY 11:00 P.M. OF THAT DAY. IF THE FEES ARE NOT PAID, YOU WILL RECEIVE A CALL FROM A DEPUTY CLERK FOR IMMEDIATE PAYMENT. IF THE FEE STILL IS NOT PAID, YOU WILL BE CONTACTED BY THE CLERK OF COURT.

III. ELECTRONIC FILING - FAX AND EMAIL POLICY (LBR 5005-4)

Electronic Filing

This court requires electronic filing pursuant to LBR 5005-4(a).

Filings by Facsimile or Email

Only with prior approval, a pleading, complaint, petition or other document to be filed with the Court may be accepted as timely filed by transmission to the Court by facsimile or email to the appropriate court email inbox at EmergencyFilings@gamb.uscourts.gov. The fax number will be given out upon approval. See LBR 5005-4(b)(c)

IV. AMENDMENTS TO PETITIONS

The general rule is that a debtor may amend a voluntary petition, list, schedule, or statement of financial affairs as a matter of course at any time before the case is closed. FRBP 1009(a). There are two notable exceptions to this rule:

(1) The period for amending the statement of intentions is limited to 45 days after the filing of the statement, unless the court grants an extension. FRBP 1009(b); and

(2) A voluntary petition of an individual cannot be later amended to include the non-filing spouse. The non-filing spouse must file a new petition and pay the full filing fee.

(3) Amendments shall be verified by the debtor. See FRBP 1008.

Notice of Amendment

When an amendment is made as a matter of course by the debtor, the debtor must give notice to the trustee and to any entity affected thereby. FRBP 1009(a). A certificate of service must be attached to the amendment. When an amendment is ordered as a result of a motion by a party in interest, the Clerk is required to give notice to the entities designated by the court. FRBP 1009(a).

Fees for Amendments

The Judicial Conference's miscellaneous fee schedule prescribes a fee for certain amendments to a debtor's schedule of creditors or list of creditors. See our website: www.gamb.uscourts.gov for the fee schedule.

V. PROOFS OF CLAIM

Filing and Service of Proofs of Claim

(1) **INTEREST:** For all claims filed, creditors who calculate interest by using the "add on interest" method shall rebate interest from their claims by using the "pro rata" method. LBR 3001-1(a).

(2) **ELECTRONIC FILING OF CLAIMS:** Entities that file 15 or more proofs of claim during any 12-month period shall file the claims electronically or obtain a Judicial Waiver. Attorneys who file claims for themselves, their firms, or on behalf of any other entity shall file all claims electronically regardless of number. If paper claims are filed in violation of this rule without a Judicial Waiver, the Court shall consider striking the documents. LBR 3001-1(b).

(3) **EXTENSION OF TIME TO FILE:** Creditors added to a bankruptcy case by amendment later than 60 days before the original bar date shall be allowed 60 days from the date of the filing of the amendment to file a proof of claim. LBR 3001-1(c).

(4) **BAR DATE FOR FILING CLAIMS IN NON-SUBCHAPTER V CHAPTER 11 REORGANIZATION CASES:** For all bankruptcy petitions filed under Chapter 11, the bar date for filing of proofs of claim or interest shall be 90 days from the first scheduled 11 U.S.C. § 341(a) Meeting of Creditors. For cause shown, the Court shall consider extending the time to file proofs of claim upon the filing of an appropriate motion or request within the 90-day period. LBR 3001-1 (d)

(5) **BAR DATE FOR FILING CLAIMS IN SUBCHAPTER V CHAPTER 11 REORGANIZATION CASES:** For all bankruptcy petitions filed under Subchapter V of Chapter 11, the bar date for filing proofs of claim or interest shall be 70 days after docketing of the order for relief of the Subchapter V Chapter 11 case. For cause shown, the Court shall consider extending the time to file proofs of claim upon the filing of an appropriate motion or request within the 70-day period. LBR 3001-1(e)

(6) **CLAIMS SECURED BY SECURITY INTEREST IN THE DEBTOR'S PRINCIPAL RESIDENCE:** When a creditor files a supplemental claim for fees, expenses, and charges pursuant to FRBP 3002.1(c) and (d) prior to the payment of the last payment under the plan by the debtor, the claim may be paid through the plan by the Chapter 13 Trustee as if it arose pre-petition unless within 60 days from the filing of the claim either the Trustee or the debtor objects to its allowance. LBR 3002.1-1.

(7) **NOTICE FOR FINAL CURE - RESPONSE:** If a creditor agrees with the information contained in the Notice of Final Cure Payment filed by the debtor or the Trustee, the response by the creditor indicating agreement may be filed pro se.

Who May Execute Proofs of Claim

A proof of claim shall be executed by the creditor or the creditor's authorized agent except as provided in FRBP 3004 and 3005. FRBP 3001(b). FRBP 3004 permits a debtor or trustee to file a proof of claim for a creditor within 30 days after expiration of the time for filing claims when none has been filed on behalf of the creditor by the first date set for the meeting of creditors. When the debtor/trustee files a claim on behalf of a creditor, the creditor must have been previously scheduled and properly notified. Also, debtor-filed claims should be legible (typewritten) and full name, address, zip code and exact amount of claim shown. FRBP 3005 provides that a co-debtor or one who has pledged security to a creditor may file a proof of claim in the name of the creditor, if the creditor did not file a claim pursuant to FRBP 3002(c) or 3003(c).

Evidence of Perfection of Security Interest

If a security interest in property of the debtor is claimed, the proof of claim shall be accompanied by evidence that the security interest is perfected. FRBP 3001(d).

Time for Filing Claims

Chapter 7, 12 and 13:

- (1). In a voluntary chapter 7 case, chapter 12 case, or chapter 13 case, a proof of claim is timely filed if it is filed not later than 70 days after the order for relief under that chapter or the date of the order of conversion to a case under chapter 12 or 13. In an involuntary chapter 7 case, a proof of claim is timely filed if it is filed not later than 90 days after the order for relief under that chapter is entered.
- (2). In a Chapter 7 liquidation case, the notice of the meeting of creditors includes a statement to the effect that it is unnecessary to file claims; and that if sufficient assets become available for the payment of a dividend, further notice will be given for the filing of claims. FRBP 2002(e). DO NOT FILE CLAIMS UNTIL GIVEN NOTICE TO DO SO.
- (3). Pursuant to FRBP 3003(b)(1) the schedule of liabilities filed pursuant to 11 U.S.C. § 521(1) shall constitute prima facie evidence of the validity and the amount of claims of creditors, unless they are scheduled as disputed, contingent or unliquidated. It shall not be necessary for a creditor or equity security holder to file a proof of claim except where creditor's or equity security holder's claim or interest is not scheduled or scheduled as disputed, contingent or unliquidated. FRBP 3003(c)(2). A proof of claim or interest executed and filed by a creditor or equity security holder supersedes any scheduling of that claim or interest. FRBP 3002(c)(4).

Chapter 11:

- (1) For bankruptcy petitions filed under non-Subchapter V of Chapter 11, the bar date for filing of proofs of claim or interest shall be 90 days from the first scheduled 11 U.S.C. § 341 Meeting of Creditors. For cause shown, the court shall consider extending the time to file proofs of claim upon the filing of an appropriate motion or request within the 90-day period. LBR 3001-1(d).
- (2) For bankruptcy petitions filed under Subchapter V of Chapter 11, the bar date for filing proofs of claim or interest shall be 70 days after the entry of the order for relief of the Subchapter V Chapter 11 case. For cause shown, the Court shall consider extending the time to file proofs of claim upon the filing of an appropriate motion or request within the 70-day period. LBR 3001-1(e)
- (3) A proof of claim filed by a governmental unit, other than for a claim resulting from a tax return filed under 11 U.S.C. § 1308, is timely filed if it is filed not later than 180 days after the date of the order for relief. A proof of claim filed by a governmental unit for a claim resulting from a tax return filed under 11 U.S.C. § 1308 is timely filed if it is filed no later than 180 days after the date of the order for relief or 60 days after the date of the filing of the tax return. The court may, for cause, enlarge the time for a governmental unit to file a proof of claim only upon motion of the governmental unit made before expiration of the period for filing a timely proof of claim. See FRBP 3002(c) for exceptions.

Place for Filing Claims

Entities that file less than (15) proofs of claim in a year may refer to “Mailing Address of the Court” on Page 1 for the proper address to send claims to. Claims should be sent to the office in which the case has been assigned.

Entities that file 15 or more proofs of claim during any 12-month period shall file the claims electronically or obtain a Judicial Waiver. See LBR 3001-1(b)

Examining Claims

All claims filed after October 4, 2005, may be examined by contacting the Clerk's Office or electronically through PACER.

Objections to Claims

(1) **GENERALLY:** Pursuant to 11 U.S.C. § 502(a) a claim or interest, proof of which is filed under 11 U.S.C. § 501, is deemed allowed unless a party in interest objects.

(2) An objection to the allowance of a claim must be in writing and filed with the court. FRBP 3007. There is no prescribed form for filing an objection to a claim, but it should state the reason for objecting. Although the right to object to a claim is generally exercised by the trustee or debtor-in-possession, a party in interest, including a creditor of a general partner in a partnership that is a debtor in a case under chapter 7 may object to the allowance of a claim. 11 U.S.C. § 502(a).

(3) **SERVICE REQUIRED:** Objections to claims shall be served pursuant to LBR 9007-1 or LBR 2002-1(e). The objecting party must serve copies of the objection to claim and the papers that must accompany it by mailing the copies to the creditor at the address for notices that appears on the proof of claim or transfer of claim. If the attorney for the creditor has appeared in the case, the objection shall also be served on the attorney. Additionally:

(A) If a creditor is the United States or an officer or agency of the United States, service shall comply with FRBP 7004(b)(4) or 7004(b)(5);

(B) If a creditor is a state or municipal corporation or other governmental organization thereof, service shall comply with FRBP 7004(b)(6); and

(C) If a creditor is an insured depository institution to which FRBP 7004(h) applies, service shall comply with FRBP 7004(h).

(i) **PROPOSED ORDER:** Proposed orders shall comply with LBR 3007-1(a).

(ii) **REFERENCE CLAIM NUMBERS:** Shall comply with LBR 3007-1(b)

(iii) **NOTICE OF TIME TO OBJECT:** The objecting party shall inform the respondent of the requirements of this rule by serving an appropriate notice that complies with the requirements of LBR 9004-1 and/or LBR 2002-1(e). The form Notice of Objection to Claim shall be used. See Appendix O

Motions to Allow Late Filed Claim or Motions to Allow Post Petition Debt

(1) When filing a motion to allow a late filed claim or motion to allow a post-petition debt, prepare and file with the motion a negative notice. Negative notice and service requirements apply whether there is a consent order or not. Include the following:

(i) A Proof of Claim on behalf of the creditor;

(ii) Upload a proposed e-order;

(iii) If the motion is filed by a creditor and the debtor consents to the allowance of the claim, obtain the consent of the debtor's attorney **and** the trustee;

(iv) Appropriate certificate of service.

(2) The trustee in Chapter 12 and 13 cases will determine if the claim can be paid through the debtor's plan. If so, the court will ordinarily enter the order without the necessity of a hearing if all parties agree. If the matter cannot be handled in accordance with these procedures, a hearing will be scheduled.

Reconsideration of Claims

A party in interest is allowed to move for reconsideration of an order allowing or disallowing a claim. FRBP 3008.

VI. HOW ISSUES MAY BE RAISED IN BANKRUPTCY COURT

The term "case" in Bankruptcy Court has a much broader meaning than in the District Court or Appeals Court. It is an umbrella term which encompasses all that happens with respect to a debtor's estate after the initial petition is filed. Issues are raised in a bankruptcy case by motions or applications, however certain issues must be raised by the filing of an adversary proceeding/complaint.

Adversary Proceedings

Certain categories of relief may be granted in a Bankruptcy Court only through an adversary proceeding. In general, FRBP 7001 requires that an adversary proceeding be commenced when seeking one of ten specified types of relief:

- (A) To recover money or property,
- (B) To determine the validity, priority, or extent of a lien or other interest in property,
- (C) To obtain approval pursuant to 11 U.S.C. § 363(h) for the sale of both the interest of the estate and of a co-owner in property,
- (D) To object to or revoke a discharge,
- (E) To revoke an order of confirmation of a Chapter 11 or Chapter 13 Plan,
- (F) To determine the dischargeability of a debt,
- (G) To obtain an injunction or other equitable relief,
- (H) To subordinate any allowed claim or interest, except when subordination is provided in a Chapter 9, 11, 12 or 13 Plan,
- (I) To obtain a declaratory judgment relating to any of the foregoing, or
- (J) To determine a claim or cause of action removed pursuant to 28 U.S.C. § 1452.

In addition to the ten actions listed in FRBP 7001, when a demand for relief specified in this rule is joined with an objection to a claim, the objection becomes an adversary proceeding. FRBP 3007.

Filing a Complaint

The first step in commencing an adversary proceeding is the filing of a complaint. FRBP 7003. The complaint must be filed with the Clerk in the district in which the bankruptcy case is pending unless the venue provisions of 28 U.S.C. § 1409 authorize the filing of the complaint in another district. FRBP 5005(a).

Form and Caption of Complaint

The general format for a complaint is governed by FRBP 7010 and Rule 10 of the FRCP. The caption of an adversary proceeding must conform substantially to Form No. B416D. FRBP 7010.

In re:

_____, Debtor

Bankruptcy Case No. YY-12345-AEC (judge's initials)

_____, Plaintiff

Chapter

V.

_____, Defendant

Adversary Proceeding No.

Contents of Complaint

As each complaint is unique, there is no prescribed form for the body of the complaint. However, Rule 10 of the FRCP sets forth general requirements for all pleadings which should be followed in complaints:

- (a) Every pleading must have a caption with the court's name, a title, a file number, and a Rule 7(a) designation. The title of the complaint must name all the parties; the title of other pleadings, after naming the first party on each side, may refer generally to other parties.
- (b) Paragraphs; Separate Statements. A party must state its claims or defenses in numbered paragraphs, each limited as far as practicable to a single set of circumstances. A later pleading may refer by number to a paragraph in an earlier pleading. If doing so would promote clarity, each claim founded on a separate transaction or occurrence—and each defense other than a denial—must be stated in a separate count or defense.
- (c) Adoption by Reference; Exhibits. A statement in a pleading may be adopted by reference elsewhere in the same pleading or in any other pleading or motion. A copy of a written instrument that is an exhibit to a pleading is a part of the pleading for all purposes.
- (d) Rule 8 of the FRCP applies to adversary proceedings through FRBP 7008. They set forth general requirements as to the content of the complaint including:
 - (i) a jurisdictional statement, which shall contain a reference to the name, number, and chapter of the case under the Bankruptcy Code to which the adversary proceeding relates and to the district and division where the case under the Bankruptcy Code is pending.
 - (ii) a short and plain statement of the claim showing that the pleader is entitled to relief; and
 - (iii) a demand for judgment for the relief the pleader seeks.
- (e) See Rule 8 and Rule 12 of the FRCP in reference to rules of pleading defenses, affirmative defenses, and effect of failure to deny.

Adversary Cover Sheet

When an adversary proceeding is not filed electronically, it must be accompanied by an Adversary Proceeding Cover Sheet. This form, issued by the Administrative Office pursuant to FRBP 9009, is designed to assist the Clerk in completing the adversary proceeding opening report form. This form may be obtained from the Clerk's Office or from the Court's web site. For authorized filers in the CM/ECF system, an adversary can be commenced

without including a pdf image of a completed adversary cover sheet. For electronic filings, the use of a cover sheet is not prohibited, but one is not mandatory.

Numbers Assigned to Adversary Proceedings

(A) A separate adversary proceeding number is assigned to each adversary proceeding. The numbering system for adversary proceedings follows the same pattern as case numbers. Also, the initials of the judge assigned to the case are shown as a part of the number, i.e.19-5046 AEC .

(B) It is very important that the case number, the chapter number, and the adversary proceeding number be indicated on all adversary pleadings filed.

Amendments to Complaints

A complaint may be amended once as a matter of course at any time before a responsive pleading is served, but any other amendments may be made only upon leave of court or by written consent of the adverse party. FRBP 7015; FRCP 15(a).

Filing Fee for Complaints

(A) The fee for filing an adversary proceeding is \$350.00. 28 U.S.C. § 1914(a).

(B) There are some exceptions to the fee requirement.

- a. No charge to U.S. Agency.
- b. If the trustee or debtor-in-possession files the complaint, the fee must be paid only by the estate, to the extent there is an estate.
- c. This fee must not be charged if:
 - i. The debtor is the plaintiff; or
 - ii. A child support creditor or representative files the complaint and submits an affidavit or other proper documents.

Time Limits for Filing Complaints

(A) Complaints may be filed at any time during the pendency of the case, except complaints objecting to discharge under 11 U.S.C. § 727, and certain complaints to determine dischargeability of debts under 11 U.S.C. § 523(c). See FRBP 4007(b),(c) and (d). In a Chapter 7 liquidation case, a complaint objecting to the debtor's discharge under 11 U.S.C. § 727(a) of the Bankruptcy Code shall be filed not later than 60 days following the first date set for the meeting of creditors. FRBP 4004(a). In a Chapter 11 reorganization case, such a complaint shall be filed not later than the first date set for the hearing on confirmation. FRBP 4004(a). A complaint to determine the dischargeability of any debt pursuant to 11 U.S.C. § 523(c) of the Bankruptcy Code shall be filed not later than 60 days following the first date set for the meeting of creditors held pursuant to 11 U.S.C. § 341(a). These time limits are stated in the notice of the 341 Meeting of Creditors.

(B) On motion of any party in interest, after hearing on notice, the court may, for cause, extend the time fixed for filing a complaint. The motion shall be made before such time has expired. FRBP 4004(b) and 4007(c).

Issuance of Summons and Notice of Pre-Trial

Upon the filing of a complaint, the Clerk shall issue a summons. Rule 16 of the FRCP, made applicable to adversary proceedings by FRBP 7016, sets forth procedures for scheduling and planning the course of events in an adversary proceeding. In most adversary proceedings the pre-trial conference pursuant to Rule 16 is assigned upon

issuance of the summons. The Clerk will issue all summons to the plaintiff's attorney. The plaintiff's attorney shall serve the summons along with a copy of the complaint.

Service of Summons and Complaint

A summons is only valid for 7 days following its issuance. FRBP 7004(e). It is the responsibility of the plaintiff or the plaintiff's attorney to serve promptly the summons issued by the court and the complaint on the defendant(s). FRBP 7004(a); FRCP 4(a). The summons issued by the court and complaint must be served within 7 days of the issuance of the summons, and, if service is not perfected within that time period, a new summons must be issued and served. FRBP 7004(f). The summons and complaint may be served anywhere in the United States. FRBP 7004(d). *Bankruptcy Reform Act of 1994, amended FRBP 7004 to provide that service on an insured depository institution in a contested matter or adversary proceeding shall be made by certified mail addressed to an officer of the institution unless:*

- (1) *The institution has appeared by its attorney, in which case the attorney shall be served by first-class mail;*
- (2) *the court orders otherwise;*
- (3) *the institution has waived in writing its entitlement to service by certified mail by designating an officer to receive service.*

The summons issued by the court and complaint may be served in a variety of ways as set forth in FRBP 7004 and Rule 4 of the FRCP, first class mail service, personal service, and publication. If service is perfected by the plaintiff by any authorized form of mail, service is complete upon mailing, not delivery by the Postal Service. FRBP 7004(e) and 9006(e).

NOTE: FRBP 7004(9) requires that the debtor be served at the address shown in the petition or Statement of Financial Affairs or to such other address as the debtor may designate in a filed writing and, if debtor is represented by an attorney, upon the debtor's attorney by any means authorized under FRCP 5(b).

Proof of Service

When service is completed, the plaintiff's attorney shall file a certificate of service with the Clerk.

Responsive Pleadings

(A) There are no official forms for responsive pleadings. As with all pleadings in an adversary proceeding, the caption must conform to Form 416D. FRBP 7010. FRBP 7008 and 7012 and Rules 8 and 12 of the FRCP provide detailed guidance as to the presentation of defensive pleadings. One requirement is that the responsive pleading must admit or deny any allegation that the proceeding is core or non-core, and, if the response is that the proceeding is non-core, the pleading must include a statement that the party does or does not consent to entry of final orders or judgments by the Bankruptcy Judge. FRBP 7012(b).

(B) If a complaint is duly served, the defendant shall serve an answer within 30 days after the issuance of the summons, except where a different time is specified by the court. The United States or an officer or agency thereof shall serve an answer within 35 days after issuance of the summons. Also, see FRBP 7012(a) for times fixed for filing responses to cross-claims, counterclaims, etc.

Service and Filing of Pleadings

(A) Rule 5 of the FRCP made applicable to adversary proceedings by FRBP 7005, governs the service and filing of every pleading subsequent to the original complaint. The general rule is that every pleading and every paper filed in a case must be served upon each of the parties unless the court orders otherwise.

(B) If a party is represented by an attorney, service must be made upon the attorney unless the court orders service upon the party. Service may be by electronic notification, mail or by delivery of a copy as defined in Rule 5(b) of FRCP.

(C) FRBP 7004(b)(9) requires that the debtor be served at the address shown in the petition or other such address as the debtor may designate in a filed writing.

(D) See also LBR 7005-1 - Certificates of Service in Adversary Proceedings as to Discovery.

(E) All papers which must be served on parties shall be filed with the court either before service or "within a reasonable time thereafter." FRCP 5(d) All pleadings shall be filed with the Clerk.

Discovery

Discovery conducted in adversary proceedings shall be controlled by FRCP 5. Also see LBR 7005-1 regarding certificate of service.

Jury Trial (LBR 9015-1)

(A) **AUTHORITY FOR BANKRUPTCY JUDGES TO CONDUCT JURY TRIALS:** The United States District Court for the Middle District of Georgia, by order entered November 18, 1994, designated each of the Bankruptcy Judges of this Court to conduct jury trials pursuant to 28 U.S.C. § 157.

(B) **APPLICABILITY OF CERTAIN FEDERAL RULES OF CIVIL PROCEDURE:** Rules 38, 39, and 47-51 FRCP, and Rule 81(c) FRCP, insofar as they apply to jury trials, apply in cases and adversary proceedings, except that a demand made under Rule 38(b) FRCP shall be filed in accordance with FRBP 5005.

(C) **CONSENT TO HAVE TRIAL CONDUCTED BY BANKRUPTCY JUDGE:** If the right to a jury trial applies and a timely demand has been filed under Rule FRCP 38(b), the parties may consent to have a jury trial conducted by a Bankruptcy Judge under 28 U.S.C. § 157(e) by jointly or separately filing a statement of consent no later than 30 days after the conclusion of the initial pre-trial conference.

DEFAULT JUDGMENTS

(1) Entry of Default

(A) FRBP 7012(a) provides that the defendant to an adversary proceeding must serve an answer or motion within 30 days of the issuance of the summons by the court, unless the court prescribes a different time. If the United States or an officer or agency of the United States is a defendant, an answer must be served within 35 days of the issuance of the summons. FRBP 9006 provides that if the last day is a Saturday, Sunday or legal holiday, the deadline is extended until the end of the next day that is not a Saturday, Sunday, or legal holiday.

(B) If the defendant serves neither an answer nor one of the motions prescribed by FRBP 7012(b) within the time fixed by FRBP 7012(a), the defendant is deemed to be in default. FRBP 7055 incorporates by reference Rule 55 of the FRCP. This Rule provides that when the defendant is in default, the plaintiff may seek to have the Clerk enter the default on the court docket.

(C) The Clerk is permitted to enter a default only upon being presented with an affidavit setting forth the requisite facts. The facts to be included within the affidavit should include:

- (i) Date of issuance of summons;

- (ii) Statement of whether the court fixed a deadline for the filing of an answer or motion, or whether the 30-day or 35-day time limit applies;
- (iii) Date of service of the summons and complaint;
- (iv) Date of filing of an affidavit of service;
- (v) Statement that no answer or motion has been received within the time limit fixed by the court or by FRBP Rule 7012(a);
- (vi) Statement that the defendant is not in the military service, as required by 50 U.S.C. Appendix § 520. If the defendant is, or may be, in the military service, the defendant is afforded certain protections which must be addressed prior to the entry of default.
- (vii) Statement that defendant is not an infant or incompetent person.

(D) If appropriate showing is made by the plaintiff that a default has in fact occurred, entry of default can be entered.

(2) Judgment by Default

Once the Clerk has entered the Clerk's Entry of Default, the plaintiff may seek default judgment. See: Rule 55(b) of the FRCP for more complete details. Rule 55(b) of the FRCP provides two methods for obtaining a judgment by default:

(A) If the complaint seeks a sum certain, the defendant is neither an infant nor an incompetent person, and the defendant has not served an answer or motion, the Clerk may enter a judgment for that amount upon receipt of an affidavit from the plaintiff setting forth the amount due. By sum certain, the rule means an amount that can be fixed by simple calculation or that can be set by documentation, such as an invoice. Merely because a party claims a specific amount, such as \$3 million for pain and suffering, does not make that an amount certain.

(B) In all other instances, including a defendant who served an answer or motion and then fails to appear at a court hearing, default judgment must be entered by the court upon the plaintiff filing a motion or application for default judgment. If request is made for attorney's fees, the judgment must be entered by the court.

(C) In the U.S. Bankruptcy Court for the Middle District of Georgia, the default judgment in ALL instances is entered by the court. See: FRCP 55(b) for more details.

(D) See Appendix E "Affidavit in Support of Request for Entry of Default and Default Judgment"

(3) Setting Aside the Judgment by Default

Rule 55(c) of the FRCP states that ". . . if a judgment by default has been entered [the court] may . . . set it aside in accordance with Rule 60(b) of the FRCP" Rule 60(b) authorizes a court to set aside a judgment on account of mistake, inadvertence, surprise, excusable neglect, newly discovered evidence, fraud, etc. A motion to set aside the default on these grounds must be made within a reasonable time, but not more than one year after the default judgment was entered and shall substantially conform to LBR 9013-1 and be accompanied by a notice of hearing and certificate of service.

MOTIONS

In many instances in bankruptcy cases, relief shall be requested by the filing of a motion. A motion, which is a request made to the court for an order or ruling, is usually written, but also may be made orally at a hearing.

FRBP 9013 and 9014. Motions must be used to request an order from the court when no other form is specified under the Bankruptcy Code or Rules. FRBP 9013. Motions filed pursuant to FRBP 9013 may be uncontested.

(1) Contents of Motions/Multiple Requests for Relief are governed by LBR 9004-1.

Any waiver of the 30-day requirement of 11 U.S.C. § 362(e) of the Bankruptcy Code by the movant shall be recited in the motion and set out in the title of the motion.

Additionally, LBR 9013-1 requires that any motion that is filed and which may be granted without a hearing shall have a proposed order bearing a title that describes relief granted sent as an E-Order to the court's electronic filing system. If the motion requests alternative relief as allowed under LBR 9004-1(a), the order must dispose of all matters raised in the motion. All motions should indicate applicable Bankruptcy Code sections, rules, or other legal authorities which affect the granting or denial of relief which is sought. All motions filed pursuant to this Rule shall be accompanied by a notice that complies with the requirements of LBR 9004-1(c).

SERVICE/NOTICE OF MOTIONS

Every written motion other than one which may be considered ex parte shall be served by the moving party on the trustee or debtor-in-possession and on those entities specified by the rules or, if service is not required or the entities to be served are not specified by the rules, the moving party shall serve the entities the court directs. FRBP 9013. Also, keep in mind that in most instances it is necessary to serve motions upon the United States Trustee.

FRBP 7004(b)(9) requires that the debtor be served at the address shown in the petition or to such other address as the debtor may designate in a filed writing and, if debtor is represented by an attorney, upon the debtor's attorney by any means authorized under FRCP 5(b)

Notice – Requirements of Form (LBR 9004-1)

(i) The language described in LBR 9004-1(c)(5)(B) shall be used in events not specifically requiring a hearing (negative notice events) in the Court's electronic case filing system. If no objection is filed, the Court may grant the relief requested without further notice or hearing.

(ii) Court Hearing Scheduler (CHS) provides notice information for the following events in the Court's electronic case filing system (the graphic below is for example purposes only - you must check CHS for the current list of motions):

Hearing Scheduler for all Chapters
Select the pleading you are filing; then click Next.

Hearing Required, No Response Date Needed
Attendance at Hearing is Required

- ☒ Counter Affidavit
- ☐ Motion for Adequate Protection
- ☐ Motion for Approval of Waiver of Discharge
- ☐ Motion for Authority to Obtain Credit
- ☐ Motion for Contempt
- ☐ Motion for Continuation of Utility Service
- ☐ Motion for Disgorgement of Attorney Fees
- ☐ Motion In Rem Relief from Stay
- ☐ Motion for Relief from Stay
- ☐ Motion for RFS & for Adequate Protection
- ☐ Motion to Compel (Except for Motions to Compel Chapter 7 Trustee to Abandon Estate Property)
- ☐ Motion to Determine Validity of Payment Change
- ☐ Motion to Dismiss Case (All Types) by Creditor
- ☐ Motion to Dismiss Case (All Types) by Trustee
- ☐ Motion to Dismiss For Failure to Attend First Meeting by Trustee
- ☐ Motion to Reconsider or Vacate (all types)
- ☐ Motion to Extend or Limit Exclusivity Period
- ☐ Motion to Sell Property (Ch. 11 - all types)
- ☐ Motion for Substantive Consolidation
- ☐ Motion to Use Cash Collateral
- ☐ Motion for Withdrawal of Claim
- ☐ Objection to Debtor's Claim of Exemptions
- ☐ Objection to Transfer of Claim
- ☐ Pre-Trial Conference (adversary cases)

Negative Notice Permitted
Attendance at hearing may be Required

- ☐ Application for Compensation
- ☐ Application to Pay Administrative Expenses
- ☐ Authorizing Continued Use of Existing Bank Accounts
- ☐ Motions for Approval of Agreement
- ☐ Motion for Co-Debtor Relief From Stay
- ☐ Motion for Hardship Discharge
- ☐ Motion for Joint Administration
- ☐ Motion for Turnover of Property
- ☐ Motion to Allow Late Claim
- ☐ Motion to Amend Complaint
- ☐ Motion Amend Order
- ☐ Motions to Avoid Lien (all types)
- ☐ Motion to Compel Chapter 7 Trustee to Abandon Estate Property
- ☐ Motion to Assume Lease or Executory Contract
- ☐ Motion to Compromise Controversy
- ☐ Motion to Declare Account Status Current
- ☐ Motion to Declare Lien Satisfied
- ☐ Motions to Dismiss by Debtor
- ☐ Motion to Determine Mortgage Fees and Expenses
- ☐ Motion to Establish Compensation Procedures
- ☐ Motion to Extend Automatic Stay
- ☐ Motion to Impose (Stay)
- ☐ Motion to Incur Additional Debt
- ☐ Motion to Make Direct Plan Payments
- ☐ Motion to Modify Plan After Confirmation
- ☐ Motion to Re-Negotiate Home Loan
- ☐ Motion to Redact

- ☐ Motion to Redeem Property of the Estate
- ☐ Motion to Reject Lease or Executory Contract
- ☐ Motion to Reopen Case
- ☐ Motion to Seal
- ☐ Motions to Sell Property (Ch. 7,12,13 - all types)
- ☐ Motion Substitute Attorney
- ☐ Motion to Substitute Collateral
- ☐ Motion to Suspend Plan Payments (aka Moratorium)
- ☐ Motion to Transfer Case (BK Only)
- ☐ Motion to Waive Appearance
- ☐ Objection to Claim
- ☐ Objection to Claim by Trustee
- ☐ Objection to Claim by Trustee (Amended)

☐ **All Other Matters (Including Requests for Oral Argument)**

Next

Form and noticing of motions shall comply with LBR 9004.

Motion to Modify Chapter 13 Plans Post-Confirmation

- (1) All notices shall use the language required by LBR 9004-1(c)(5)(B). See **Appendix L** for an example of the Notice of Motion or Objection Other Than Objections to Claims.

Motion to Modify Chapter 13 Plans Before Confirmation

- (1) Notice of Motion to Modify Chapter 13 Plan Before Confirmation with Rescheduled Confirmation Date shall be used if the timing of the notice requires a rescheduling of the confirmation hearing. See **Appendix M** for the form.
- (2) Notice of Motion to Modify Chapter Plan Before Confirmation – No Rescheduling Required shall be used if the timing of the notice does not require a rescheduling of the confirmation hearing. See **Appendix N** for the form.

Motions for Relief from Stay

- (1) **GENERALLY, and FEES:** A motion for relief from the automatic stay provided by 11 U.S.C. § 362 (a) of the Bankruptcy Code must be made in accordance with FRBP 9014. FRBP 4001 (a)(1). A motion to terminate, annul, modify, or condition the automatic stay provided under 11 U.S.C. § 362(a) must be accompanied by a filing fee of \$199. The fee need not be paid if the motion is accompanied by the electronic submission of an order which specifies an agreement or stipulation to the termination, annulment, modification, or conditioning of the automatic stay, or when seeking relief from stay of actions against co-debtors under 11 U.S.C. § 1201 and 11 U.S.C. § 1301. Also, motions filed by a child support creditor or representative of such creditor who files a form that contains language detailing the child support, its status, and other characteristics as prescribed in 11 U.S.C. § 304(g) of the Bankruptcy Reform Act 1994 are exempt from payment of the filing fee.

- (2) **TIME REQUIREMENTS/WAIVERS:** There are stringent time requirements related to a motion for relief from stay. The stay of any act against property of the estate under 11 U.S.C. § 362(a) expires as to the party making the request 30 days after a motion for relief is made unless the court before that time, after notice and hearing, orders such stay continued in effect pending the conclusion of, or as a result of, a final hearing and determination. 11 U.S.C. § 362(e). If the hearing held within the 30-day period is a preliminary hearing, then the final hearing, must be concluded not later than 30 days after the conclusion of the preliminary hearing, unless the 30-day period is extended with the consent of the parties in interest or for a specific time which the court finds is required by compelling circumstances. 11 U.S.C. § 362(e). When the court determines that the stay should be continued pending conclusion of a final hearing, it can only do so if “there is a reasonable likelihood that the party opposing relief from such stay will prevail at the conclusion of such final hearing.” 11 U.S.C. § 362(e). Motions for relief from stay are given special consideration in scheduling and calendaring so that the deadlines imposed by the Bankruptcy Code and Rules are met. Hearings are assigned by the Clerk’s Office within 30 days, if possible. Although not required, this court routinely requests that all motions for relief from stay be accompanied by a waiver of right to hearing within 30 days. Any waiver of the 30-day requirement of 11 U.S.C. § 362(e) by the movant shall be recited in the motion and set out in the title of the motion. LBR 9004-1(b). This waiver is requested to help facilitate scheduling matters for the court’s calendar.
- (3) **Contents of Motions for Relief from Stay:** Shall comply with LBR 4001-1.
- (4) **Agreements providing for Relief from the Automatic Stay or for the provision of Adequate Protection:** Shall comply with LBR 4001-1(b).
- (5) **Payment of secured claims after Motion for Relief is granted or collateral surrendered:** Shall comply with LBR 4001-1(d).

Special Procedures for Ex Parte Relief

Special Procedures for Ex Parte Relief shall comply with LBR 4001-1(d).

Lien Avoidance Motions:

- (1) A proceeding by the debtor to avoid a lien or other transfer of property exempt under 11 U.S.C. § 522(f) of the Bankruptcy Code should be by motion pursuant to FRBP 9014. FRBP 4003(d). The motion to avoid lien is one of the most common motions filed by a debtor.
- (2) In a Chapter 7, 11, or 12 case, in order to avoid a lien pursuant to 11 U.S.C. § 522(f), the debtor shall submit the motion and certificate of service with a proposed e-order. LBR 9013-1.
- (3) Motions to avoid liens under 11 U.S.C. § 522(f) of the Bankruptcy Code shall be served with a notice to respond that complies with requirements of LBR 9004-1. The motion shall be served pursuant to LBR 9007-1 or LBR 2002-1(e). In Chapter 13 cases, the debtor may propose to avoid liens in the Chapter 13 plan. The plan shall specify the creditor’s by name whose liens are affected by such provisions in the plan and such provisions shall only apply to those liens that can be avoided under 11 U.S.C. § 522(f). Any other liens other than those that are voidable under 11 U.S.C. § 522(f) shall not be included in such lien avoidance provisions in the Chapter 13 plan.
- (4) A proposed e-order shall be uploaded to the court’s electronic docketing system. Each proposed order on Lien Avoidance must include the following language at the end of the order: “...subject to reinstatement under 11 U.S.C. § 349 upon dismissal of the case”.

- (5) If no objection to the granting of the relief sought is filed and served within 21 days from the date of the motion and notice (as evidenced by certificate of service), the proposed order may be entered without further action. If an objection is served and filed within 21 days after the date of service in a Chapter 7, 11, or 12 case, the scheduled hearing will be held.

Motions for Summary Judgment:

- (1) Motions for Summary Judgment shall comply with LBR 7056-1.

Notice of Hearing on All Other Matters

- (1) If a hearing is required to be held concerning any matter other than one provided for under LBR 9007-1(c), the Notice of Hearing form shall be used. See **Appendix P**.

Notice of Motion or Objection Other Than Objections to Claims

- (1) Unless a hearing is specifically required for the matter being noticed, the Notice of Motion form should be used. See **Appendix L**.

VII. APPLICATIONS

There are several proceedings under the Bankruptcy Code that involve no obvious adverse parties and that require only judicial consideration and determination by the application of the relevant Bankruptcy Code or Rule. They generally are initiated by application or notice, rather than by complaint (as in adversary proceedings) or motions (as in contested matters). Applications may only be used when the Bankruptcy Code or Rules so specify. The Rules provide that the following requests be made by application:

- (1) Application for permission to pay filing fees in installments. FRBP 1006(b)(1).
- (2) Application for appointment of creditors' committee organized before the order for relief. FRBP 2007(a).
- (3) Application for employment of professional persons. FRBP 2014(a) & LBR 2014-1.
- (4) Application for compensation for services rendered and reimbursement of expenses. FRBP 2016(a) and LBR 2016-1.
- (5) Application to shorten period of notice. FRBP 9006(c).

Notice and Hearing Requirement

- (1) Of all the proceedings initiated by an application, the only matter for which the Bankruptcy Code and Rules expressly require notice and an opportunity for hearing is the application for compensation for services rendered and reimbursement of expenses. 11 U.S.C. § 330(a). Applications for Interim Compensation of one thousand dollars or less shall be served upon the debtor and any trustee appointed in the case, and upon the United States Trustee. All Applications for Interim Compensation

that exceed one thousand dollars shall be served upon the debtor, any trustee appointed in the case, and the United States Trustee. A notice of filing of the application shall be served upon all creditors in the case. All Applications and notice of filing of the application shall be accompanied by the appropriate notice of the time to respond and the pending hearing date as required by these Rules. LBR 2016-1(c).

- (2) Compensation payable upon dismissal of a chapter 13 case shall comply with LBR 2016-1.

Objections: In the event there is an objection to a proceeding initiated by application, an actual dispute would be created and the procedures under FRBP 9014 would apply.

VIII. APPEALS

Manner of Taking Appeal

An appeal from a final judgment, order, or decree of a Bankruptcy Judge to the District Court shall be taken by filing a notice of appeal with the Clerk within the time allowed by FRBP 8002. FRBP 8001(a). The notice of appeal shall:

- (1) Conform substantially to the appropriate official form, Form 417A.
- (2) Contain the names of all parties to the judgment, order or decree appealed from and the names, addresses and telephone numbers of their respective attorneys;
- (3) Be accompanied by a filing fee of \$298.00. This amount includes a \$5.00 fee for filing the notice of appeal and a \$293.00 fee for docketing a proceeding on appeal.

Time for Filing Notice of Appeal

The notice of appeal shall be filed with the Clerk within 14 days of the date (see FRBP 9006 for computation of time) of the entry (the date the judgment, order or decree was actually signed or mailed) of the judgment, order, or decree appealed from. FRBP 8002(a). The Bankruptcy Judge may extend the time for filing the notice of appeal by any party for a period not to exceed 21 days from the expiration of the time otherwise prescribed if the requirements set forth in FRBP 8002(d) are met.

Expedited Appeal

There may be a need for expedited decisions in some appeals from the Bankruptcy Court to the District Court. Any party requesting expedited treatment of an appeal under these Rules shall file with the Clerk of the Bankruptcy Court a request for expedited treatment that substantially conforms with LBR 8010-1(b). See Appendix D for “Request to Expedite Appeal”

Designation of Record and Statement of Issues

- (1) Within 14 days after filing the notice of appeal, the appellant shall file with the Bankruptcy Clerk and serve on the appellee a designation of the items to be included in the record on appeal and a statement of the issues to be presented. Within 14 days after the service of the statement of the appellant, the appellee may file with the

Bankruptcy Clerk and serve on the appellant a designation of additional items to be included in the record on appeal. FRBP 8009.

(2) Parties designating items as part of the record on appeal **shall provide copies of the items to the Bankruptcy Clerk**. If a party fails to provide the required copies, the Clerk shall prepare copies at the party's expense. FRBP 8009. The Bankruptcy Clerk must transmit to the Clerk of the court where the appeal is pending either the record or a notice that the record is available electronically. FRBP 8010.

(3) It is not sufficient to designate the record as "the entire file" or simply to say "omit nothing from the record." By order of the United States District Court, the record must contain an itemization of the documents to be included. You may access the electronic docket report or request a copy of the docket report from the Clerk to aid in designating the record on appeal.

(4) Failure of the appellant to take any step other than the timely filing of a notice of appeal does not affect the validity of the appeal but is grounds only for such action as the District Court deems appropriate, which may include dismissal of the appeal.

Requesting Transcripts

If a party designates a transcript as part of the record, the party should immediately, after the filing of the designation, request a transcript and make satisfactory arrangements for payment of its cost. If the transcript cannot be completed within 30 days of receipt of the request, the reporter should seek an extension of time from the Clerk and the action of the Clerk should be entered in the docket and parties notified in accordance with FRBP 8010(a). Please see section entitled "**Transcripts and Duplicate Tapes/Audio CDs of Proceedings**" for procedures on transcript, tape and audio CD ordering.

Duty of Clerk to Transmit Record

(1) The Bankruptcy Court Clerk must promptly transmit the Notice of Appeal to the District Court Clerk. FRBP 8003(d)(1). All parties will be notified when the record on appeal is transmitted to the District Court for docketing.

(2) In addition to the requirements under FRBP 8003(d), upon the failure of an appellant to properly file a designation of record and issues on appeal as required by FRBP 8009, the Clerk shall, in accordance with LBR 8010-1(a), prepare and transmit a skeletal record consisting of the order being appealed, the notice of appeal, and any documents filed after the notice of appeal that relate to the appeal.

Briefs

The procedure for filing briefs is directed by the District Court Clerk. Pursuant to FRBP 8018, unless the District Court excuses the filing of briefs or specifies different time limits:

(1) The appellant must serve and file a brief with the District Court Clerk within 30 days after entry of the appeal on the District Court's docket.

(2) The appellee must serve and file a brief with the District Court Clerk within 30 days after service of the brief of appellant. If the appellee has filed a cross appeal, the brief of the appellee shall contain the issues and argument pertinent to the cross appeal, denominated as such, and the response to the brief of the appellant.

(3) The appellant may serve and file a reply brief within 14 days after service of the appellee's brief, but a reply brief must be filed at least 7 days before scheduled argument unless the district court, for good cause, allows a later filing.

(4) If an appellant fails to file a brief on time or within an extended time authorized by the district court an appellee may move to dismiss the appeal - or the district court, after notice, may dismiss the appeal on its own motion. An appellee who fails to file a brief will not be heard at oral argument unless the district court grants permission.

Motions for Leave to Appeal

The party seeking leave to appeal must file a motion for leave to appeal. Upon the filing of the motion, accompanied by certificate of service, the Clerk's Office will docket and monitor the motion, and after the response time of 14 days after service of the motion has expired, the motion for leave to appeal and any response will be transmitted to the District Court Clerk for disposition

Motions for Leave to Appeal shall be governed by LBR 8004-1.

Motions for Stay Pending Appeal

FRBP 8007 addresses how to proceed with a motion for stay pending appeal. A motion for a stay of the judgment, order or decree of the Bankruptcy Court, for approval of a supersedes bond, or for other relief pending appeal must ordinarily be made in the first instance in the Bankruptcy Court. The Bankruptcy Court may suspend or order the continuation of other proceedings in the case or make any other appropriate order during the pendency of the appeal on such terms as will protect the rights of all parties in interest. A motion for stay may be made in the District Court and not the Bankruptcy Court, but the motion must show why relief was not obtained from the Bankruptcy Court.

Dismissal of an Appeal

(1) Procedure for dismissal of an appeal is set forth in FRBP 8023.

(2) The Clerk of the District Court must dismiss an appeal if the parties file a signed dismissal agreement specifying how costs are to be paid and pay any fees that are due. An appeal may be dismissed on the appellant's motion on terms agreed to by the parties or fixed by the District Court.

IX. REMOVAL AND REMAND

Removal in bankruptcy is the transfer of claims or causes of action in civil actions pending in a state court or another federal court in a state in which the civil action is pending. 28 U.S.C. § 1452.

(1) Removal is Initiated by Filing a Notice of Removal:

(A) Unless removal actions are excluded from the District Court's standing order of referral to the Bankruptcy Court, the removal process begins by the filing of a notice of removal with the Bankruptcy Clerk. The filing should be done within the state or federal court's district and division in which the civil action is pending. FRBP 9027(a). If removal actions are excluded from the standing order of referral, all of the filing discussed in this

section should be with the Clerk of the District Court. **NOTE:** In the Middle District of Georgia, the order of referral does not exclude removals.

(B) The notice of removal shall be signed pursuant to FRBP 9011, and contain a short and plain statement of the facts which entitle the party filing the notice to remove, contain a statement that upon removal of the claim or cause of action the proceeding is core or non-core, and if non-core, that the party filing the notice does or does not consent to entry of final orders or judgment by the bankruptcy judge, and be accompanied by a copy of all process and pleadings filed in the court being removed. FRBP 9027(a)(1).

(2) **Fee Required for Removal:** Notice of removal shall be accompanied by the same fee as required for filing an adversary proceeding. If the notice of removal is not filed electronically, an adversary cover sheet is required.

(3) Time for Filing Notice of Removal

(A) If the claim or cause of action in a civil case is pending when a case under the Bankruptcy Code is commenced, notice of removal may be filed only within the **LONGEST** of:

(i) 90 days after the order for relief;

(ii) 30 days after entry of an order terminating a stay, if the claim or cause of action has been stayed under 11 U.S.C. § 362 of the Bankruptcy Code or

(iii) 30 days after a trustee qualifies in a chapter 11 reorganization case, but not later than 180 days after the order for relief. FRBP 9027(a)(2).

(B) If a case under the Bankruptcy Code is pending when a claim or cause of action is asserted in another court, a notice of removal may be filed within the **SHORTER** of:

(i) 30 days after receipt, through service or otherwise, of a copy of the initial pleading setting forth the claim or cause of action sought to be removed; or

(ii) 30 days after receipt of the summons if the initial pleading has been filed with the court, but not served with the summons. FRBP 9027(a)(3).

(4) **Notice of Removal:** The party filing the notice of removal must serve a copy of the notice on all parties to the removed claim or cause of action promptly after the filing of the notice. FRBP 9027(b).

(5) **Filing of Copy of Notice with Court from Which Removal is Being Effected:** The party filing the notice of removal must also file a copy of the notice with the Clerk of Court from which the claim or cause of action is removed promptly after the filing of the notice. FRBP 9027(c).

(6) **When Removal Effected:** Removal is effective upon the filing of the copy of the notice of removal with the Clerk of Court from which the claim or cause of action is removed. No formal act or order of the Bankruptcy Court is required. FRBP 9027(c).

(7) Motions for Remand:

(A) Motions for remand of a removed claim or cause of action must be filed with the Bankruptcy Clerk and served on the parties to the removed claim or cause of action. FRBP 9027(d) Unless a District Court Judge orders otherwise, a motion for remand should be determined by the Bankruptcy Judge.

X. REAFFIRMATION AGREEMENTS

a. A reaffirmation agreement is a debtor's agreement with a creditor to reaffirm the debtor's obligation to repay a debt that would otherwise be dischargeable. A common example of the type of debt involved in a reaffirmation agreement is the note on a debtor's automobile.

b. A reaffirmation agreement, to be enforceable, must be made before the granting of a discharge and filed with the court. 11 U.S.C. § 524(c)(1)(3). The Bankruptcy Code requires that the agreement advises the debtor, clearly and conspicuously, that the agreement may be rescinded at any time prior to discharge or within 60 days after the filing of the agreement with the court, whichever is later, by giving notice of rescission to the creditor holding the claim. 11 U.S.C. § 524(c)(4).

Reaffirmation Agreements shall be governed by LBR 4008-1.

XI. MISCELLANEOUS INFORMATION

Discharge of Debtor - When Granted

(1) Discharges in Chapter 12 and Chapter 13 cases are granted when debtor completes payments under a confirmed plan. 11 U.S.C. § 1228; 11 U.S.C. § 1328.

(2) In Chapter 7 cases, discharges are granted after the time for filing objections to discharge expires, provided there are no objections pending. 11 U.S.C. § 727; FRBP 4004 (c)(1).

(3) The court shall delay entry of the order of discharge as provided by FRBP 4004(c)(2) for 30 days and shall grant only one additional extension requested by motion within the 30 days. LBR 4004-3.

(4) The order confirming plan operates as a discharge in Chapter 11 cases except in the case of an individual chapter 11 debtor and except in certain Subchapter V cases. 11 U.S.C. §§ 1141, 1191.

Discharge Hearings

Discharge hearings are no longer required by the Bankruptcy Code or Rules except for court approval of reaffirmation agreements. *11 U.S.C. § 524(d) of the Bankruptcy Code was amended by the Bankruptcy Reform Act of 1994 to require the court to hold a discharge hearing and to advise the debtor of the consequences and effects of such a reaffirmation agreement only if the debtor was not represented by an attorney during the negotiating of the agreement.* Therefore, discharge hearings will be scheduled only when necessary. If a hearing is scheduled, the debtor must appear at the hearing and the court must inform the debtor that the agreement is not required by law and of the legal effect and consequences of the agreement. 11 U.S.C. § 524(d)(1). The court, after a hearing will issue an appropriate order on the reaffirmation agreement. LBR 4008-1

Exemptions/Lien Avoidance

(1) The law permits a debtor to claim certain property as exempt to the exclusion of creditors. This is part of the “fresh start” approach.

(2) The Bankruptcy Code of 1978 contains itemized exemptions that may be claimed by individual debtors. However, it also gave each state the right to opt out of federal exemptions and set up its own exemptions.

Georgia passed such a law and the exemptions set up by the state of Georgia in Code § 44-13-100 are the only exemptions available to Georgia residents. Debtors must claim and itemize their exemptions in Schedule C.

(3) Schedule C shall contain information in accordance with LBR 4003-1.

(4) If Schedule C is amended, notice to all parties in interest in the case shall be sent by the debtor.

(5) The trustee or any party in interest has the right to object to the exemptions claimed by the debtor within 30 days after the conclusion of the meeting of creditors, or the filing of an amendment to the list, whichever is later. Objections must be in writing with copy served on the trustee, the debtor and the debtor's attorney. FRBP 4003(b).

(6) Exempt property is put beyond the reach of creditors in order to preserve and protect the debtor's fresh start. If a lien impairs a debtor's exemption, the debtor may cancel the lien if it is a judicial lien, usually on real estate, or a lien that is a "nonpossessory, nonpurchase money security interest" in household goods, books or tools of trade or health aids for the debtor or debtor's dependents. Automobiles and motor vehicles are generally excluded from lien avoidance.

(7) Motions to avoid liens under 11 U.S.C. § 522(f) shall be served with a notice to respond that complies with requirements of LBR 9004-1. The motion shall be served pursuant to LBR 9007-1 or LBR 2002-1(e). In Chapter 13 cases, the debtor may propose to avoid liens in the Chapter 13 plan. The plan shall specify the creditors whose liens are affected by such provisions in the plan. LBR 9007-1. LBR 4003-2 and/or LBR 2002-1(e).

Subpoenas to Witness in Bankruptcy Matters

(1) It is not necessary that subpoenas be issued by the Clerk, although the Clerk still has authority. A subpoena may be issued by attorneys as officers of the court.

(2) Attorneys are authorized to issue subpoenas in the name of the court in which they are authorized to practice, and in the case of a deposition or a production of documents taking place in another district, in the name of the court where the deposition or production is to take place.

(3) It is not required that the attorney be a member of the bar or admitted pro hac vice in the district in whose name the subpoena is issued, so long as the deposition or production pertains to a primary action in a court in which the attorney is authorized to practice.

(4) The requirement that a subpoena be issued under seal is abolished. When a subpoena is issued, the only requirement is that it be signed.

(5) Proof of service of the subpoena is required to be filed only when necessary. Presumably, this would happen only when a dispute arises.

(6) The Clerk's Office will provide blank forms of subpoenas to all attorneys who request them. There are now four forms:

- Form B2540 - Subpoena for Rule 2004 Examination
- Form 2550 - Subpoena to Appear and Testify at a Hearing or Trial in a Bankruptcy Case (or Adversary Proceeding)
- Form 2560 - Subpoena to Testify at a Deposition in a Bankruptcy Case (or Adversary Proceeding)
- Form B2570 - Subpoena to Produce Documents, Information, or Objects or to Permit Inspection of Premises in a Bankruptcy Case (or Adversary Proceeding)

(7) Adversary subpoenas and case subpoenas shall also be used for taking depositions, as appropriate.

Archived and Closed Files

(1) The Clerk's Office has a limited amount of storage space for closed bankruptcy case files, adversary files, and bankruptcy docket sheets. The Clerk's Office strives to retain locally closed paper files for two years after closing. All other paper files are shipped to the Federal Records Center (FRC), 4712 Southpark Boulevard, Ellenwood, GA 30294. If a closed paper file has been shipped to the FRC, it will be necessary for the party requesting the file to pay a \$64.00 archive retrieval fee before the file can be ordered from the FRC. All requests for closed paper files should be made in writing to the Clerk's Office. Please note that a file ordered from the FRC for viewing or copying will be returned to the FRC.

(2) The FRC has entered into a courtesy agreement with the courts whereby it will accept mail requests and telephone requests for photocopies of personal bankruptcy case files only. Also, the FRC will provide counter service to the public for reviewing bankruptcy files in lieu of returning the file to the court. Please contact the court for information regarding the ordering of files from the FRC.

(3) Electronic case summaries, docket and claims information may be obtained through the PACER service. Computers in the public area of the Clerk's Office in Macon and Columbus may be used without charge, however a fee may be assessed if printed pages are needed.

Reopening Cases (FRBP 5010)

(1) Filing fees prescribed by 28 U.S.C. § 1930(a) must be collected when a Bankruptcy Code case is reopened, unless the reopening is to correct an administrative error or for certain limited actions related to the debtor's discharge. Failing to file a Financial Management Certificate is not grounds to reopen a case without paying the reopening fee.

(2) If a Bankruptcy Code case is reopened for any other purpose, the appropriate fee to be charged is the same as the filing fee in effect for commencing a new case on the date of reopening.

(3) A motion to reopen the case shall substantially conform to LBR 9013-1 and be accompanied by a notice of hearing and certificate of service. The filing fee is due **AT THE TIME THE MOTION TO REOPEN IS FILED**.

(4) Appointment of Trustee in reopened cases: FRBP 5010 provides that a case may be reopened on motion of the debtor or other party in interest pursuant to 11 U.S.C. § 350(b). In a chapter 7, 12, or 13 case a trustee shall not be appointed by the United States trustee unless the court determines that a trustee is necessary to protect the interests of creditors and the debtor or to insure efficient administration of the case. Motions to reopen cases should include a statement regarding the necessity for a trustee to be reappointed if the motion is granted.

(5) The case number assigned to the bankruptcy case when it was originally filed is used when the case is reopened.

(6) If the moving party anticipates filing a subsequent proceeding (complaint, etc.), the case must be reopened via entry of an order prior to the court entertaining other documents.

(7) Usually a "Motion to Reopen" should be filed if the case has been CLOSED. A "Motion to Vacate or Reconsider" should be filed if the case has only been DISMISSED and not statistically closed. There is a difference between dismissal of a case and closing. Please check PACER, VCIS or contact the court directly to determine whether the case is closed.

Court Reporting

All federal court proceedings must, by law, be recorded verbatim. Verbatim records of court proceedings are an important part of our legal system because, among other things, they provide a basis for rulings by higher courts in instances in which the outcome of a particular trial is appealed by either side. If a case is appealed, a transcript may be required from the record that was taken in court at the time of the trial. Bankruptcy Judges have the option of using contract reporters or electronic court recorder operators (ECROs). The Bankruptcy Court, Middle District of Georgia uses ECROs. There are a number of steps attorneys can take to facilitate record taking in the courtroom:

- (1) Give one of your business cards to the ECRO.
- (2) Give the ECRO a complete list of witnesses you will call during the proceeding.
- (3) When speaking on the record, make certain that you talk directly in front of a microphone.
- (4) At the beginning of the proceedings, identify yourself at a microphone and spell your name for the record.
- (5) Make certain that all witnesses you call also identify themselves clearly and spell their names.
- (6) Make certain that verbal responses are elicited from all witnesses, or that some audible indication be made by you through the microphone.
- (7) If any of your witnesses will present testimony containing unusual or technical vocabulary, prepare a list of such words and terms for the ECRO.

Transcripts and Duplicate Tapes/Audio CDs of Proceedings

(1) Requests for copies of audio CDs, tapes and transcripts for cases heard by the court shall be made to the Deputy Clerk designated below or to the court ECRO. The estimated cost of the transcript will be provided to you and must be paid in advance of its preparation. A fee of \$31.00 per audio CD or tape duplicated must be paid to the Clerk of Court in advance.

- (2) Requests for transcripts of hearings, copies of tapes or audio CDs should be directed to:

Denise Harris, Courtroom Deputy 478-749-6814

Transcript Rates are:	<u>Original</u>	<u>1st copy</u>	<u>Additional Copies</u>
Ordinary (30 day)	\$4.40 per page	\$1.10 per page	\$.75 per page
14-Day	\$5.10 per page	\$1.10 per page	\$.75 per page
Expedited (7 day)	\$5.85 per page	\$1.10 per page	\$.75 per page
Three-day	\$6.55 per page	\$1.30 per page	\$.90 per page
Daily	\$7.30 per page	\$1.45 per page	\$1.10 per page

- (3) Electronic Public Access to Digital Audio - \$2.40

(4) Prices are offered for general information only and subject to change. Please contact the persons named above for actual estimate of charges to apply.

Attorneys Duties and Information

Attorney duties and information shall be governed by LBR 9011-1.

Withdrawal of Counsel

Withdrawal of counsel shall be governed by LBR 2091-1.

Courtroom Practice and Procedures

(1) Attorneys practicing before the court are expected to appear before the court at all prescribed times, to be on time, to come prepared and to possess a working knowledge of the Bankruptcy Code, Federal Rules of Bankruptcy Procedure, Federal Rules of Civil Procedure, Federal Rule of Evidence, and the Local Rules and General Orders of this court.

(2) To avoid being interrupted by the court's electronic court recorder operator/contract reporter, it will be necessary for the attorney to state his/her full name for the record for each case where an appearance is necessary. Attorneys should address the court or examine witnesses at the podium or at the microphone at the counsel table.

(3) All pleadings presented to the court must legibly reflect the attorney's name, mailing address, phone number and Georgia State Bar number, if the attorney is a member of the State Bar of Georgia. It would also be extremely helpful to the court if the pleadings were filed several days prior to the court hearing so that the pleadings could be processed for docketing, and most importantly reviewed by the judge prior to hearing. Filing pleadings on the day of the hearing or in the courtroom at the hearing can cause undue delays and confusion, particularly on days where many chapter 13 cases are scheduled.

(4) Attorneys who plan to introduce exhibits in court should bring extra copies for other counsel and any witnesses. The original introduced exhibit is for the judge to view during the hearing or trial.

Presentation of Multimedia in the Courtroom

Any party wishing to present evidence in the form of multimedia such as videos on compact disc, videocassette recorders, overhead projections or any other form of such evidence presentation requiring electronic equipment, is required to make arrangements with the clerk for that equipment to be present in the courtroom. The clerk's office will strive to accommodate litigants provided there is enough advance notice for the need for such equipment. However, it is the responsibility of the presenter of the evidence to be prepared to provide their own electronic equipment at the time of any trial or hearing and that equipment must be pre-approved by the clerk's office before it can be utilized in the courtroom.

Continuances and Settlements

(1) Requests for continuances and settlements must be made to the assigned judge's calendar or courtroom Clerk as soon as possible and before making any written request. The request must be accompanied by representation by counsel that they have consulted with the other parties in interest, must identify specifically who has been consulted, and must state whether or not the other parties in interest consent to the continuance or settlement.

(2) Even the representation that a continuance or settlement has been agreed to is not a guarantee that the court will approve the matter if, in the opinion of the court, the rights of other parties are affected or other cause exists.

Final Disposition Calendar

Pursuant to LBR 9072-1 and LBR 9073-1, The court uses a “Final Disposition Calendar” in an effort to eliminate stale motions and show cause hearings for failure to prosecute.

See Appendix J for Final Disposition Calendar Procedures.

Emergency or Expedited Hearings and Motions

(1) When a party files a pleading and seeks to expedite its consideration by the Court to within 10 or fewer days, a separate motion for expedited hearing shall be filed contemporaneously with the affected pleading. The motion shall contain sufficient information on its face to permit the Court to determine the necessity for expedited treatment. All motions to expedite shall have a separate certification regarding the request for emergency hearing and a proposed order sent to the Court’s electronic case filing system. The certificate shall substantially comply with the form certificate labeled as Appendix A - Certificate Regarding Request for Expedited Hearing.

(2) Motions for emergency or expedited hearings must be filed pursuant to FRBP 9013. The motion must specify in the caption that an emergency or expedited hearing is sought and must include a statement as to the specific irreparable harm which will be caused if the motion is not granted, not just a statement that irreparable harm will occur.

(3) Please specify in the motion for emergency hearing the time frame within which you are requesting the substantive motion be set. Upon filing of the motion for emergency hearing, the Clerk’s office will take steps immediately to bring the motion to the attention of the appropriate judge. It is not necessary, after filing such a motion, to call the Clerk’s office to see when the motion will be set for hearing. The Clerk’s office will expeditiously handle all properly identified motions for emergency hearing and will contact the movant after obtaining a determination on said motion from the judge. The movant, upon filing of the emergency motion, should be prepared to serve the notice of hearing on all applicable parties, and in certain instances, by telephone or facsimile transmission, if the motion is granted. The certificate of service and/or the certificate of telephone/facsimile notice must be filed prior to the expedited hearing.

XII. CHAPTER 11 MATTERS

Chapter 11 Plan and Disclosure Statement

- (1) It is the responsibility of the filing party to serve the U. S. Trustee.
- (2) The disclosure statement shall be filed with the plan or within the time fixed by the court. Disclosure statements shall, to the extent applicable, be complete in one document including any attached exhibits and shall include all information pursuant to LBR 3016-2.
 - a. Exception: A disclosure statement is not required for Small Business Subchapter V cases.

Objections to Confirmation of Chapter 11 Plan

(1) Objections to the plan should not be filed until after the disclosure statement has been approved and balloting on the plan has begun. The order approving the disclosure statement (or conditionally approving) sets the date for filing objections to the plan. In a Small Business Subchapter V case, the order setting the hearing on confirmation will set the date for filing objections to the plan.

(2) Should you wish a review of the ballots filed prior to the confirmation hearing, please contact the court.

Ballots - Voting on Plans

Voting on plans shall be governed by LBR 3018-1.

CHAPTER 11 CONFIRMATION PROCEDURE

Applicable to Chapter 11 non-individual, non-individual small business and individual/non-individual small business subchapter V consensually confirmed cases in which substantial consummation has been completed.

SUMMARY

This procedure outlines the steps to be followed in which an order confirming the plan has been entered and substantial consummation has been completed. Substantial consummation is defined in 11 U.S.C. § 1101(2).

PROCEDURE

Prepare the final report and final account of the administration of the estate which is required by 11 U.S.C. § 704(a)(9). Also see 11 U.S.C. §§ 1106(a)(1) and 107(a). The final report should incorporate an application for final decree. A proposed final decree should also be submitted. See LBR 3022-1(b) (non-individual) and LBR 3022-2(a)(2) (individual/non-individual small business subchapter v consensual plan)

Final Report and Application for Final Decree

There is no required format for the Final Report. Generally, it should be a commentary on the progress made in implementing the plan, should relate directly to 11 U.S.C. § 1101(2), and should demonstrate to the Court that substantial consummation has been completed.

The Application for Final Decree should state the plan has been substantially consummated. It should also show the names and addresses, if known, of the holders of claims or interests which have not been surrendered or released in accordance with the provision of the plan and the nature and amounts of claims or interests, and other facts as may be necessary to enable the Court to pass on the provisions to be included in the Final Decree.

See Appendix F – Final Report and Application for Final Decree

Final Account

The Final Account of the administration of the estate is a summary of the fees and expenses awarded by the Court and the claims allowed at the time of confirmation. See Appendix G – Final Account

Final Decree

There is no required format for the proposed Final Decree. Generally, it should contain a finding that substantial consummation has been completed and any special provisions covered in the application for final decree. The last paragraph of the proposed Final Decree should read as follows:

ORDERED that this Final Decree shall be effective twenty-eight days after the date of entry and the case closed without further order of the Court, unless prior to the effective date a party in interest files with the Court a motion objecting for cause to the Final Decree. Upon such filing, the objecting party shall immediately serve notice on the debtor and the case shall remain open pending hearing on the motion. The Final Report and Application for Final Decree are on file with the Office of the Clerk of the United States Bankruptcy Court and may be examined during normal business hours.

See Appendix H – Final Decree

Chapter 11 Individual/Individual Small Business Discharge and Closing Procedure

(1). Upon confirmation of an individual debtor's Chapter 11 plan, the Court will continue to resolve all pending matters then before the Court. When all matters have been concluded, the Court will enter a Final Decree directing that the case be closed but that the Court reserves jurisdiction to enter a discharge to the individual chapter 11 debtor upon completion of all payments under the plan. Any matters that need to be brought before the Court, other than the issuance of the discharge, will require that the case be reopened by motion pursuant to 11 U.S.C. § 350. See LBR 3022-1(c) for information on final decree for discharging debtors.

(2) Once the debtor completes all payments under the confirmed plan, the individual debtor shall file a Chapter 11 Individual Final Report and Account and file a Certificate of Plan Completion and Request for Discharge. LBR 3022-1(d)

(3) After the expiration of a 21-day deadline with no objections to the Certificate of Plan Completion and Request for Discharge and once the financial management certificate has been filed, the court may grant an individual chapter 11 discharge. Since the case is already closed, no further action is required.

Chapter 11 Small Business Subchapter V Individual and Non-Individual Non-consensually Confirmed

Follow the same procedures shown above for Chapter 11 Individual/Individual Small Business with one exception. The court will not close the case until the plan has been completed and a discharge has been entered. See LBR 3022-2(b)

See Appendix F – Final Report and Application for Final Decree

See Appendix G – Final Account

See Appendix H – Final Decree

XIII. CHAPTER 12 MATTERS

a. 11 U.S.C. § 1221 provides for the filing of a plan by the debtor within 90 days after the order for relief, and 11 U.S.C. § 1224 provides that the confirmation hearing shall be concluded not later than 45 days from the filing of the plan.

b. The trustee shall file a Final Report upon discharge, dismissal or conversion of the case.

XIV. CHAPTER 13 MATTERS

The filing and service of a chapter 13 plan shall be governed by LBR 3015-1.

All Chapter 13 debtors, as well as the trustee and holders of secured and unsecured claims, shall use the Chapter 13 plan form on our website www.gamb.uscourts.gov.

All creditor objections to confirmation of a Chapter 13 Plan may not be combined with other requests for relief. See LBR 9004-1(a)(2)

XV. Other Matters

Conversions

See 11 U.S.C. §§ 706, 1112, 1208, 1307; FRBP 1017, 1019; and LBRs 1017-1 and 1019-1. See the Fee Schedule at www.gamb.uscourts.gov for Conversion fees.

Dismissals

Dismissals are governed by LBR 1017-2.

Sale of Estate Property (LBR 6004-1)

(1) NOTICES: Notices required by FRBP 6004 shall be prepared by the movant. A notice shall, in addition to the requirements of FRBP 2002(c)(1) and LBR 9004-1, contain the name and address of the proposed buyer, if known, and estimated cost of the sale or lease, including commissions, auction fees, document preparation costs, recordation fees and other such expenses.

(2) CHAPTER 12 AND 13 CASES: Before filing any motion for proposed use, sale or lease of property in a Chapter 12 or Chapter 13 case, the movant shall consult with the Trustee and determine, if possible, whether the Trustee will consent to the motion. Any such motion shall indicate that such consultation has taken place and shall recite the Trustee's position, if known to the movant.

(3) SALES OF PROPERTY SUBJECT TO SECURITY INTEREST: Any motion to sell property that is subject to one or more claims of security interest shall set forth the identity of the creditor, the description of property subject to such claim, and the amount of such claim. Compliance with this rule shall not constitute waiver of the movant's right to object to the validity or priority of such liens.

Joint Administration/Consolidation

Joint Administration/Consolidation is governed by LBR 1015-1(b).

XVI. RETURNED NOTICES/UNDELIVERABLE NOTICES

Returned notices are governed by LBR 2002-1(h)

Undeliverable notices are governed by LBR 2002-1(i)

Master Mailing List/Matrix

Master Mailing List and Matrix shall be governed by LBR 1007-2.

Please observe the following guidelines when preparing the creditor mailing list.

- The name and address of each creditor must be five (5) lines or less.
- Type (no handwriting or script type) the mailing matrix on plain white paper (no letterhead). Use regular mixed capitalization – do not type in all caps. Use font 10 or 12.
- Each line may contain no more than 40 characters including blank spaces.
- Names and addresses should be in alphabetical order and left justified in a single column (flush against the left margin with no leading blank spaces). Maintain margin of at least one inch from edges.
- Nine-digit zip codes must be typed with a hyphen separating the two groups of digits.
- City, state, and zip code must be on the last line. Use standard, 2-character postal abbreviations for state codes (GA, FL, NY, etc).
- Each creditor name/address must be separated by at least two blank lines.
- Do not include case numbers, debtor, debtor's attorney or U.S. Trustee's name/address, page numbers, ATTN lines, symbols, stray marks, headers, footers, etc.

EXAMPLE - CREDITOR LIST

Classified Directory
615 Main Street
P.O. Box 2230
Niagra Falls, NY 14203

Joe Smith Marine Corp
P. O. Box 1197 L
Los Altos, CA 94022

Ernest Young, LLC
1800 1ST Interstate Center
Seattle, WA 98104

DeVoe Marine Coatings Co., Inc.
Marine Division
P. O. Box 7536
Louisville, KY 40207

Required Addresses for Proper Notice to Major Agencies of the U.S. Government and Georgia State Government

United States Trustee Region 21 362 Richard Russell Building 75 Ted Turner Drive, SW Atlanta, GA 30303 404-331-4437	Assistant U.S. Trustee Northern District of Georgia 362 Richard Russell Building 75 Ted Turner Drive, SW Atlanta, GA 30303 404-331-4437
Assistant U.S. Trustee Middle District of Georgia 440 Martin Luther Jr., Blvd., Suite 302 Macon, GA 31201 478-752-3544 Assistant U.S. Trustee Northern District of Florida 110 East Park Avenue Suite 128 Tallahassee, FL 32301 850-942-1660	Georgia Department of Revenue Bankruptcy 2595 Century Parkway NE, Suite 339 Atlanta, GA 30345 404-417-6543 bankruptcy.notices@dor.ga.gov
United States Attorney P. O. Box 1702 Macon, GA 31202-1702	Attorney General of the United States U.S. Department of Justice 950 Pennsylvania Avenue, NW Washington, DC 20530-0001
Correspondence to IRS: Internal Revenue Service P. O. Box 7346 Philadelphia, PA 19101-7346 Toll Free: 800-973-0424 / Fax: 267-941-1015	Bankruptcy Code Section 505 Requests and All Other Service Notices: Franchise Tax Board Bankruptcy Section MS: A-340 P. O. Box 2952 Sacramento, CA 95812-2952
Overnight mail to IRS: Internal Revenue Service 2970 Market Street; Mail Stop 5-Q30.133 Philadelphia, PA 19104-5046 Payments to IRS: Internal Revenue Service P. O. Box 7317	U.S. Securities & Exchange Commission Office of Reorganization Atlanta, Regional Office 950 Paces Ferry Road, NE Suite 900 Atlanta, GA 30326-1382

Philadelphia, PA 19101-7317 Service of Adversary Proceedings: Franchise Tax Board Chief Counsel c/o General Counsel Section P. O. Box 1720, MS A-260 Rancho Cordova, CA 95741-1720	404-842-7600 / Fax 404-842-7633
---	---------------------------------

XVII. HELPFUL REMINDERS

a. Any motion which may be granted without a hearing shall have a proposed order bearing a title which describes relief granted sent as an E-Order to the Court's electronic filing system. If the motion requests alternative relief as allowed under LBR 9004-1(a), the order shall dispose of all matters raised in the motion. If a hearing is held on the motion and the proposed order is no longer appropriate to the outcome of the hearing, the movant shall upload an appropriate order at the earliest opportunity.

b. FRBP 9011 requires an attorney to list his/her name, address, and telephone number on every document filed with the court. Additionally, LBR 9011-1(b) requires that each attorney shall include the attorney's state bar number and email address on all documents filed with the Court. The state bar number shall be placed on the document in immediate proximity to the attorney's signature.

c. Orders requested by the court should be uploaded within 7 days of the request.

d. In all pleadings, the caption shall indicate the chapter in which the case is filed and, as part of the case number, include the initials of the judge assigned to the case. LBR 9004-2.

e. On all schedules and statement of affairs, in the event the answer to the question is "Not Applicable" or "None", the debtor should indicate N/A or None, instead of leaving blank. When numerical entries apply, enter a dollar amount or 0.0. Do not use dollar signs (\$) or commas (,) when completing fields that require a numerical entry.

f. If unable to file electronically:

Although all pleadings or other documents filed by attorneys are required to be filed electronically under FRBP 5005, there are some narrow exceptions for attorneys to file documents by paper, email, fax, or other methods approved in advance by the Clerk of Court. In the event an attorney files a document by paper, please ensure the following guidelines are met:

(1) All paper documents filed with the court must be on 8 ½ x 11 paper. Any attachments to claims shall be no larger than 8 ½ x 11 and stapled behind the claim in the upper left-hand corner.

(2) Cover letters transmitting documents are not necessary unless requested to be used as an acknowledgment.

(3) Manuscript covers should not be used.

(4) The caption on paper documents should be formatted with room for the filed stamp on the top right side of the first page.

(5) Paper documents submitted for filing should NEVER be duplexed (copied on both sides).

(6) Debtor-filed claims should be legible (typewritten) and contain full name and address of the creditor, including the zip code. Please include the words “filed by debtor” in the box titled “Name of Creditor”. Correct amount of the claim should be shown. Creditor must have been previously scheduled by the debtor and notified. Such claims should be filed at least 7 days prior to the confirmation hearing to give the Chapter 13 trustee time to include them in the calculation.

APPENDIX A

UNITED STATES BANKRUPTCY COURT
MIDDLE DISTRICT OF GEORGIA

IN RE:

:
:
:
:
:
:

CASE NUMBER

Movant

CERTIFICATION REGARDING
REQUEST FOR EXPEDITED HEARING

I hereby certify, as a member of the Bar of this Court, that I carefully examined this matter and that there is a true necessity for an emergency hearing.

I certify further that the necessity for this emergency hearing has not been caused by any lack of due diligence on my part, but has been brought about only by the circumstances of this case.

I certify further that I have made a bona fide effort to resolve this matter without hearing.

Dated this _____ day of _____, _____.

/s/ Attorney's Name

Attorney for the Debtor

Bar No.: _____

Address: _____

Telephone No.: _____

APPENDIX B

File ballots via CM/ECF or physical delivery (such as mail or courier): U. S. Bankruptcy Court, P. O. Box 1957, Macon, GA 31202 or by courier to the U.S. Bankruptcy Court at 433 Cherry Street, Macon, GA 31201.

BALLOT SUMMARY (BY CLAIM)

<u>NAME</u>	<u>CLASS</u>	<u>ALLOWED CLAIM</u>				<u>VOTE</u>
(alphabetized)	(per plan)	p/c	sched	ct ord	Sec 502(c)	

APPENDIX C

File ballots via CM/ECF or physical delivery (such as mail or courier): U. S. Bankruptcy Court, P. O. Box 1957, Macon, GA 31202 or by courier to the U.S. Bankruptcy Court at 433 Cherry Street, Macon, GA 31201.

BALLOT SUMMARY (BY CLASS)

<u>CLASS</u>	<u>TOTAL #</u>	<u>TOTAL AMOUNT</u>	<u>TOTAL # (Y) / (N)</u> (YES) (NO)		<u>TOTAL AMNT (Y)/(N)</u> (YES) (NO)		<u>CLASS</u> <u>VOTE</u>

APPENDIX D

THE UNITED STATES BANKRUPTCY COURT FOR THE
MIDDLE DISTRICT OF GEORGIA
_____ DIVISION

IN RE:	:	BANKRUPTCY CASE NO _____
	:	
	:	
DEBTOR	:	
	:	
_____	:	
	:	
APPELLANT	:	BANKRUPTCY AP NO. _____
	:	
	:	DISTRICT COURT CASE NO. _____
VS	:	
	:	
	:	
APPELLEE	:	

REQUEST TO EXPEDITE APPEAL

(Appellant) (Appellee) request the appeal in the above referenced case be expedited and that the Clerk of the Bankruptcy Court expressly call this request to the attention of the Clerk of the District Court at the time the record is transmitted to the District Court. This request is based upon the following:

1. Please make a one paragraph statement explaining the history, facts and issues to the case.
2. What is the urgency that would justify expediting this appeal?
3. Is any date certain deadline being delayed pending decision of this appeal? If yes, explain and state the date.
4. What damages will occur and to whom if this appeal is not decided by a date certain?

/s/ Attorney's Name

Attorney for Debtor

Bar No.: _____

Address: _____

Telephone No.: _____

APPENDIX E

An Affidavit of Default in an Adversary Proceeding must state that the defendant is neither a minor nor an incompetent person in accordance with FRCP 55 and FRBP 7055. The Affidavit must also state that the Defendant is not a military service member subject to the protection of the Solders' and Sailors' Civil Relief Act of 2003. An example statement is: "To the best of the Plaintiff's information and belief, Defendant is not a minor or an incompetent person, and is not in the military service and thereby subject to the protection of the Solders' and Sailors' Civil Relief Act."

THE AFFIDAVIT BELOW IS NOT A REQUIRED FORM. IT IS PROVIDED AS AN EXAMPLE FOR REFERENCE PURPOSES ONLY:

United States Bankruptcy Court
Middle District of Georgia, _____ Division

IN RE:

Case No.

Chapter

Debtor

Plaintiff

Adversary Proceeding No

vs

Defendant

AFFIDAVIT IN SUPPORT OF REQUEST FOR ENTRY OF DEFAULT AND DEFAULT JUDGMENT

Plaintiff commenced the above-styled adversary proceeding on _____. A summons was issued and Defendant was duly served with a copy of the summons and complaint pursuant to Bankruptcy Rule 7004(b) on _____. The time in which Defendant may answer or otherwise move after the complaint has expired. The Defendant has not filed an answer in this adversary proceeding and the time for Defendant to answer or otherwise move has not been extended. To the best of the Plaintiff's information and belief, Defendant is not a minor or an incompetent person, and is not in the military service and thereby subject to the protection of the Solders' and Sailors' Civil Relief Act.

This affidavit is made in compliance with Rule 55(a) and (b) of the Federal Rules of Civil Procedure, and is submitted for the purpose of requesting the Clerk of this Court to enter a default and Default Judgment against the Defendant, granting all relief requested in Plaintiff's Complaint.

This the _____ day of _____.

/S/ Attorney's Name

Attorney for the Debtor

Bar No: _____

Address: _____

Telephone No. _____

APPENDIX F

UNITED STATES BANKRUPTCY COURT MIDDLE DISTRICT OF GEORGIA

IN RE:	:	CHAPTER 11
	:	
ABC Manufacturing Company	:	
	:	
DEBTOR(S)	:	CASE NO. 00-00000

FINAL REPORT AND APPLICATION FOR FINAL DECREE

NOW COMES ABC Manufacturing Company, Debtor herein, and submits this Final Report and Application for Final Decree. Contemporaneously with the report, the Debtor is also submitting a Final Account which should be considered in evaluating the Debtor's Application for Final Decree.

There has been substantial consummation of the Plan confirmed by the Court on [date of confirmation]. The debtor has transferred substantially all of the property proposed by the Plan to be transferred; the debtor has assumed the management of all the property dealt with by the Plan; and the Debtor has begun commencement of distribution under the Plan. Each of these three requirements under 11 U.S.C. § 1101(2) is summarized below.

I.

Transfer of Property

The Plan proposed the sale of two different tracts of real estate, both of which had been sold prior to confirmation. From the sale of these two tracts of land, the debt owed the Federal Land Bank in the amount of \$00,000.00 was paid in full; the Internal Revenue Service was paid \$00,000.00; and State and County taxes in the amount of \$00,000.00 were paid. The sale disposed of the Class 3 claims and substantially paid the Class 2 claim of the Internal Revenue Service and all other priority tax claims owed by the Debtor.

The Plan proposed no further transfer of property other than that property which will be disbursed to the creditors under the Plan. None of the assets of ABC Manufacturing Company was proposed to be transferred and none has been transferred.

II.

Assumption by the Debtor of Management of Property

The Plan provided for the Debtor to stay in control of his business and continue to operate ABC Manufacturing Company after confirmation. The Plan did not contemplate any other individual or business entity taking control or assisting the Debtor in the

management of the business and its property. Since [date of confirmation], the Debtor has remained in control and has operated his business pursuant to the terms of the Plan.

III.

In [month,year], the Debtor commenced distribution to all holders of Class 6 claims. The following amounts have been paid on those claims in each month since confirmation: \$000.00 in [month 1]; \$000.00 in [month 2]; and \$000.00 in [month 3, etc.]. The Debtor has also made payments in the amount of \$000.00 per month to the Internal Revenue Service for each of these [# of months] months. The Debtor has continued to pay First Bank since filing for relief and has made the payments required by the Plan to be made to First Bank since confirmation. The Debtor is current in his obligations to First Bank and will maintain that debt current until the debt is paid in full. The Debtor has not yet begun distribution of payments on Class 7 claims but the Plan did not contemplate distribution until after full payment to holders of Class 6 claims. As of the date of this report, the Debtor has made all payments contemplated by the Plan including the commencement of distribution to unsecured creditors.

APPLICATION FOR FINAL DECREE

As shown above, there has been substantial consummation of the Plan. The Plan contemplated full payment of all claims and the debtor is on schedule for meeting this provision of the Plan. All administrative costs have been paid and it is not anticipated that there will be any further application for administrative expenses. All property to be transferred under the Plan has been transferred and no further transfers are contemplated.

WHEREFORE the Debtor respectfully requests the Court to approve his Final Report and grant his Application for Final Decree by entering a Final Decree in this case

This [date of submission]

/s/ Attorney's Name
A. W. Lawyer, Attorney for Debtor

**UNITED STATES BANKRUPTCY COURT
MIDDLE DISTRICT OF GEORGIA**

IN RE:	:	Chapter 11
Debtor	:	Case No. 00-00000

[Name] Debtor herein, filed a Voluntary Petition under Title 11, Chapter 11, in the United States Bankruptcy Court for the Middle District of Georgia on [filing date]. Pursuant to the requirements of 11 U.S.C. § 1107(a), § 1106(a)(1) and § 704(9), Debtor now files this Final Account.

In the course of this case the Court has approved and awarded professional fees to the Attorney(s) for the Debtor in the amount of \$00,000.00. Said amount does not include any expenses approved and awarded.

In addition, in the course of this case the Court has approved and awarded professional fees to other professionals retained in this case (attorneys, accountants, appraisers, auctioneers and other professionals employed under 11 U.S.C. §327 in the amount of \$00,000.00. Said amount does not include any expenses approved and awarded.

In the course of this case the Court has approved and awarded expenses in the amount of \$00,000.00. Said amount includes the expenses of the Attorney(s) for the Debtor and all other professionals employed in the case under 11 U.S.C. §327.

As of [date of confirmation], the date of confirmation of the Plan in this case, claims were allowed in the following categories and amounts:

\$00,000.00	Total of Secured Claims Allowed
\$00,000.00	Total of Priority Claims Allowed
\$00,000.00	Total of Unsecured Claims Allowed

The amounts reflect the amount of the claims allowed regardless of whether or not the claims in a particular category have been or will be paid in full under the Plan.

WHEREFORE the Debtor submits this Final Account in discharge of these obligations under the Bankruptcy Code and Rules, this _____ day of _____.

/s/ Attorney's Name
A. W. Lawyer
Attorney for the Debtor

APPENDIX H

**UNITED STATES BANKRUPTCY COURT
MIDDLE DISTRICT OF GEORGIA**

IN RE:	:	Chapter 11
	:	
	:	
Debtor	:	Case No. 00-00000

FINAL DECREE

WHEREAS, [Name], Debtor herein filed a Voluntary petition under Title 11, Chapter 11, in the United States Bankruptcy Court for the Middle District of Georgia on [date of filing]; and

WHEREAS, a Plan of Reorganization was proposed to the creditors and said Plan of Reorganization was confirmed by Order of this Court on [date of confirmation of Plan]; and

WHEREAS, Debtor has reported to this Court that he has substantially consummated the Plan of Reorganization; and

WHEREAS, Bankruptcy Rule 3022 provides for the entry of a Final Decree; it is therefore

ORDERED that the Final Report of the Debtor is approved, and the Application for Final Decree be and is hereby granted. It is further

ORDERED that this Final Decree shall be effective twenty-eight days after the date of entry and the case closed without further order of this Court, unless prior to the effective date a party in interest files with the Court a motion objecting for cause to the Final Decree. Upon such filing, the objecting party shall immediately serve notice on the debtor and the case shall remain open pending a hearing on the motion. The Final Report and Application for Final Decree are on file with the Office of the Clerk of Bankruptcy Court and may be examined during normal business hours.

END OF DOCUMENT

APPENDIX I

Reserved

APPENDIX J

Final Disposition Calendar Procedures

Several years ago, in an effort to eliminate stale motions and show cause hearings for failure to prosecute, the court staff developed the “final disposition calendar.” The purpose of this document is to provide information to attorneys who may not regularly practice in our district so they may understand this process.

The following are possible situations where the final disposition calendar process is triggered:

- Attorneys in the case have agreed to sign a consent order but need sufficient time to complete it.
- A movant plans to withdraw a motion.
- An attorney is directed to upload a proposed order.
- A respondent withdraws a response.
- A dismissal of an adversary proceeding.

An event called “Hearing Not Held and Continued to Final Disposition Calendar” was created for cases removed from the calendar due to a consent order or withdrawal of a motion. The event will appear on the docket sheet.

Examples of a Final Disposition Calendar docket entry:

- Hearing Not Held and Continued to Final Disposition Calendar. Reason: Motion to be withdrawn. Final Disposition Hearing scheduled for 9/18/2019 at 10:00 A.M. at Valdosta Courthouse
- Hearing Held and Continued to Final Disposition Calendar. Reason: Motion granted, Mr. Doe to submit order. Final Disposition Hearing scheduled for 9/18/2019 at 10:00 A.M. at Valdosta Courthouse

Even if the attorney submits a proposed order with the motion and the Judge grants the motion, a hearing on the Final Disposition Calendar will still be scheduled until the Judge signs the proposed order. When the Judge signs the proposed order, the hearing will be cancelled, and the attorney will not have to appear.

This gives some “breathing room” for the order to be signed and to account for any changes in the proposed order yet sets a hearing to ensure the motion will not become stale or will not be prosecuted.

You will be notified of the final disposition hearing date and time when the announcement is made regarding a matter scheduled for hearing. If you receive electronic notification, you will also receive electronic notification of the date and time when the entry is made on the docket.

The date is usually set out about 30 days from the date of the announcement. This is to allow ample time for orders to be circulated and reviewed by parties and submitted to the Court for review and signature prior to the final disposition date.

If, for example, an attorney notifies the court he or she will withdraw a motion and the withdrawal is not filed prior to the final disposition date, the attorney will be required to appear at the scheduled hearing to explain to the Court why the motion was not withdrawn. The presiding Judge may enter an order dismissing the motion for failure to prosecute or continue the hearing to the next Final Disposition Calendar, depending on the circumstances. Court staff may not contact you in an effort to obtain the order, consent order, withdrawal, or any other proposed filing that was announced to the Court.

Appendix K

United States Bankruptcy Court
Middle District of Georgia

IN RE:

Case No.: _____

Debtor(s)

Chapter: _____

**PRO SE DEBTOR STATEMENT OF ASSISTANCE RECEIVED
IN CONNECTION WITH THE FILING OF THIS CASE**

☐ I DID NOT RECEIVE ANY ASSISTANCE IN PREPARING THIS CASE FOR FILING.

☐ I DID RECEIVE ASSISTANCE IN PREPARING THIS CASE FOR FILING.

1. The person or firm that assisted is:

Name: _____

Address: _____

City: _____

Telephone: _____

2. I paid the sum of \$ _____

3. I still owe the sum of \$ _____

4. I agreed to turn over the following property or give a security interest in the following property:

5. My telephone number is: _____

6. My email address is: _____

I (we) _____, the Debtor(s), do hereby declare under penalty of perjury that the statements made are true and correct.

Executed this _____ day of _____, 20 ____.

Signature of Debtor

Signature of Joint Debtor

Appendix L

NOTICE OF MOTION

(Movant) HAS FILED DOCUMENTS WITH THE COURT TO [relief sought in motion or objection].

YOUR RIGHTS MAY BE AFFECTED. You should read these documents carefully and discuss them with your attorney, if you have one in this bankruptcy case. **If you do not have an attorney, you may wish to consult one.** If not served with this notice in accordance with the Bankruptcy Code or the Federal Rules of Bankruptcy Procedure, a copy of the motion [or other type of pleading] may be obtained upon written request to counsel for the Movant (or Objecting Party) (identified below) or at the Clerk's office.

If you do not want the court to [relief sought in motion or objection], or if you want the court to consider your views on the [motion][objection], then you or your attorney shall file with the court a written objection or response on or before [Enter date from the Court's Hearing Scheduler program (CHS) found at www.gamb.uscourts.gov]. If you are receiving this notice by mail, you may add 3 days to the response date, in accordance with FRBP 9006(f). The objection or response should be sent to:

[Clerk, U. S. Bankruptcy Court
Middle District of Georgia

or

[Clerk, U. S. Bankruptcy Court
Middle District of Georgia

P. O. Box 1957
Macon, Georgia 31202]
478-752-3506

P. O. Box 2147
Columbus, Georgia 31902]
706-649-7837

If an objection or response is filed, a hearing on the [motion or objection] shall be held on:

[Date of Scheduled Hearing] at [Time] at the [Location/Address].

Parties should consult the Court's website (www.gamb.uscourts.gov) concerning whether the hearing will be in-person, telephonic, or virtual. Please refer to Administrative Order #145 for more guidance.

If you mail your response or objection to the court for filing, you shall send it early enough so the court will receive the objection or response on or before the response date stated above.

Any response or objection shall also be served on the movant.

If you or your attorney does not take these steps, the court may decide that you do not oppose the relief sought in the motion or objection and may enter an order granting relief.

This notice is sent by the undersigned pursuant to [Enter here the Local Rule, Federal Rule, or other legal authority for issuing this notice.]

Dated this _____

/s/ Electronic Attorney Signature
ELECTRONIC ATTORNEY, 123456
Attorney for Debtor(s)
Address Line 1
Address Line 2
City, State, Zip
(XXX) XXX-XXXX
Email.address@serviceprovider.com

Appendix M

**IN THE UNITED STATES BANKRUPTCY COURT
FOR THE MIDDLE DISTRICT OF GEORGIA
_____ DIVISION**

In re:	:	BANKRUPTCY CASE
	:	
IMA SAMPLE	:	NO: 17-10000 ____ (presiding judge initials)
	:	
Debtor(s)	:	CHAPTER 13 PROCEEDING

NOTICE OF MOTION TO MODIFY CHAPTER 13 PLAN BEFORE CONFIRMATION
WITH RESCHEDULED CONFIRMATION DATE

(Movant), DEBTOR(S) IN THE ABOVE-STYLED BANKRUPTCY MATTER, HAS FILED DOCUMENTS WITH THE COURT TO MODIFY DEBTOR'S CHAPTER 13 PLAN PRIOR TO CONFIRMATION.

YOUR RIGHTS MAY BE AFFECTED. You should read these documents carefully and discuss them with your attorney, if you have one in this bankruptcy case. If you do not have an attorney, you may wish to consult one. If not served with this notice in accordance with the Bankruptcy Code or the Federal Rules of Bankruptcy Procedure, a copy of the motion may be obtained upon written request to counsel for the Movant (identified below) or at the Clerk's office.

The original confirmation hearing was scheduled for _____ (date), 20___. If you do not want the court to grant this motion, or if you want the court to consider your views on the motion, then you or your attorney shall file with the court a written objection or response no later than 7 days before the date set for the rescheduled confirmation hearing noted below **and attend the rescheduled confirmation hearing.** The objection or response should be sent to:

[Clerk, U. S. Bankruptcy Court
Middle District of Georgia or

P. O. Box 1957
Macon, Georgia 31202]
478-752-3506

[Clerk, U. S. Bankruptcy Court
Middle District of Georgia

P. O. Box 2147
Columbus, Georgia 31902]
706-649-7837

The rescheduled confirmation hearing shall be held on:

[Date of Scheduled Hearing] at [Time] at the [Location/Address].

Parties should consult the Court's website (www.gamb.uscourts.gov) concerning whether the hearing will be in-person, telephonic, or virtual. Please refer to Administrative Order #145 for more guidance.

If you mail your response or objection to the court for filing, you shall send it early enough so the court will **receive** the objection or response on or before the response date stated above.

Any response or objection shall also be served on the debtor and trustee.

If you or your attorney does not take these steps, the court may decide that you do not oppose the relief sought in the motion and may enter an order granting relief.

This notice is sent by the undersigned pursuant to LBR 3015-2(d)(2)(A).

Dated this _____

/s/ Electronic Attorney Signature
ELECTRONIC ATTORNEY, 123456
Attorney for Debtor(s)
Address Line 1
Address Line 2
City, State, Zip
(XXX) XXX-XXXX
Email.address@serviceprovider.com

Appendix N

**IN THE UNITED STATES BANKRUPTCY COURT
FOR THE MIDDLE DISTRICT OF GEORGIA
_____ DIVISION**

In re:	:	BANKRUPTCY CASE
	:	
IMA SAMPLE	:	NO: 17-10000 ____ (presiding judge initials)
	:	
Debtor(s)	:	CHAPTER 13 PROCEEDING

NOTICE OF MOTION TO MODIFY CHAPTER 13 PLAN BEFORE CONFIRMATION

(Movant), DEBTOR(S) IN THE ABOVE-STYLED BANKRUPTCY MATTER, HAS FILED DOCUMENTS WITH THE COURT TO MODIFY DEBTOR'S CHAPTER 13 PLAN PRIOR TO CONFIRMATION.

YOUR RIGHTS MAY BE AFFECTED. You should read these documents carefully and discuss them with your attorney, if you have one in this bankruptcy case. **If you do not have an attorney, you may wish to consult one.** If not served with this notice in accordance with the Bankruptcy Code or the Federal Rules of Bankruptcy Procedure, a copy of the motion may be obtained upon written request to counsel for the Movant (identified below) or at the Clerk's office.

The confirmation hearing remains scheduled for _____ (date), 20__. If you do not want the court to grant this motion, or if you want the court to consider your views on the motion, then you or your attorney shall file with the court a written objection or response no later than 7 days before the date set for the confirmation hearing noted above **and attend the scheduled confirmation hearing.** The objection or response should be sent to:

[Clerk, U. S. Bankruptcy Court
Middle District of Georgia or

P. O. Box 1957
Macon, Georgia 31202]
478-752-3506

[Clerk, U. S. Bankruptcy Court
Middle District of Georgia

P. O. Box 2147
Columbus, Georgia 31902]
706-649-7837

Parties should consult the Court's website (www.gamb.uscourts.gov) concerning whether the hearing will be in-person, telephonic, or virtual. Please refer to Administrative Order #145 for further guidance.

If you mail your response or objection to the court for filing, you shall send it early enough so the court will **receive** the objection or response on or before the response date stated above.

Any response or objection shall also be served on the debtor and trustee.

If you or your attorney does not take these steps, the court may decide that you do not oppose the relief sought in the motion and may enter an order granting relief.

This notice is sent by the undersigned pursuant to LBR 3015-2(d)(2)(B).

Dated this _____

/s/ Electronic Attorney Signature
ELECTRONIC ATTORNEY, 123456
Attorney for Debtor(s)
Address Line 1
Address Line 2
City, State, Zip
(XXX) XXX-XXXX
Email.address@serviceprovider.com

Appendix O

NOTICE OF OBJECTION TO CLAIM

[Objecting Party] HAS FILED AN OBJECTION TO YOUR CLAIM IN THIS BANKRUPTCY CASE.

Your claim may be reduced, modified, or eliminated. You should read these documents carefully and discuss them with your attorney, if you have one in this bankruptcy case. If you do not have an attorney, you may wish to consult one.

If you do not want the court to eliminate or change your claim, then you or your attorney shall file with the court a written response to the objection on or before **[Enter date from the Court's Hearing Scheduler program (CHS) found at www.gamb.uscourts.gov]**. If you are receiving this notice by mail, you may add 3 days to the response date, in accordance with FRBP 9006(f). The objection or response should be sent to:

[Clerk, U. S. Bankruptcy Court
Middle District of Georgia

or

[Clerk, U. S. Bankruptcy Court
Middle District of Georgia

P. O. Box 1957
Macon, Georgia 31202]
478-752-3506

P. O. Box 2147
Columbus, Georgia 31902]
706-649-7837

If a response is filed, a hearing on the objection to your claim shall be held on:

[Date of Scheduled Hearing] at [Time] at the [Location/Address].

If you mail your response to the court for filing, you shall send it early enough so the court will **receive** the response on or before the response date stated above.

Any response shall also be served on the objecting party.

Parties should consult the Court's website (www.gamb.uscourts.gov) concerning whether the hearing will be in-person, telephonic, or virtual. Please refer to Administrative Order #145 for further guidance.

If you or your attorney does not take these steps, the court may decide that you do not oppose the objection to your claim.

This notice is sent by the undersigned pursuant to [Enter here the Local Rule, Federal Rule, or other legal authority for issuing this notice.]

Dated this _____

/s/ Electronic Attorney Signature
ELECTRONIC ATTORNEY, 123456
Attorney for Debtor(s)
Address Line 1
Address Line 2
City, State, Zip
(XXX) XXX-XXXX
Email.address@serviceprovider.com

Appendix P

NOTICE OF HEARING

(Movant) HAS FILED DOCUMENTS WITH THE COURT TO [relief sought in motion or objection].

YOUR RIGHTS MAY BE AFFECTED. You should read these documents carefully and discuss them with your attorney, if you have one in this bankruptcy case. **If you do not have an attorney, you may wish to consult one.** If not served with this notice in accordance with the Bankruptcy Code or the Federal Rules of Bankruptcy Procedure, a copy of the motion [or other type of pleading] may be obtained upon written request to counsel for the Movant (or Objecting Party) (identified below) or at the Clerk's office.

If you do not want the court to [relief sought in motion], or if you want the court to consider your views on the [motion], then you or your attorney shall attend the hearing scheduled to be held on

[Date of Scheduled Hearing] at [Time] at the [Location/Address]. [Enter date from the Court's Hearing Scheduler program (CHS) found at www.gamb.uscourts.gov].

Parties should consult the Court's website (www.gamb.uscourts.gov) concerning whether the hearing will be in-person, telephonic, or virtual. Please refer to Administrative Order #145 for further guidance.

If you or your attorney does not take these steps, the court may decide that you do not oppose the relief sought in the motion and may enter an order granting relief.

This notice is sent by the undersigned pursuant to [Enter here the Local Rule, Federal Rule, or other legal authority for issuing this notice.]

Dated this _____

[Attorney Information]

Appendix Q
Miscellaneous Fee Schedule
As of December 1, 2023

Filing Fees:

Chapter 7 Case	\$ 338.00
Chapter 9 Case	\$1738.00
Chapter 11 Case (non-railroad)	\$1738.00
Chapter 11 Case (railroad)	\$1571.00
Chapter 12 Case	\$ 278.00
Chapter 13 Case	\$ 313.00
Chapter 15 Case	\$1738.00

Filing Fees for Motions to Reopen:

Motion to Reopen Chapter 7	\$ 260.00
Motion to Reopen Chapter 9	\$1167.00
Motion to Reopen Chapter 11 (non-railroad)	\$1167.00
Motion to Reopen Chapter 11 (railroad)	\$1000.00
Motion to Reopen Chapter 12	\$ 200.00
Motion to Reopen Chapter 13	\$ 235.00
Motion to Reopen Chapter 15	\$1167.00

The fee to reopen **does** apply if the debtor attempts to reopen a case in which the Court did not enter a discharge. Therefore, a debtor seeking to reopen a case to file a certificate of completion of a financial management course must pay the reopening fee, as no discharge has been granted in the case.

Debtor is exempt from fee to reopen:

- Reopening to permit party to file complaint to obtain determination under Rule 4007(b) (determination of dischargeability of debt)
- Reopening a case when a creditor is violating the terms of discharge under 11 USC §524
- To correct an administrative error
- Redact information under Rule 9037

Conversion Fees:

Chapter 13 to Chapter 7	\$ 25.00
Chapter 7 to Chapter 11 (non-railroad)	\$ 922.00
Chapter 7 to Chapter 11 (railroad)	\$ 755.00
Chapter 9 or 11 to Chapter 7	\$ 15.00
Chapter 12 to Chapter 7	\$ 60.00
Chapter 13 to Chapter 11 (non-railroad)	\$ 932.00
Chapter 13 to Chapter 11 (railroad)	\$ 765.00

No Conversion Fee is Due:

Chapter 11 to any Chapter other than Chapter 7
Chapter 7 to Chapter 12 or Chapter 13
Chapter 13 to Chapter 12
Chapter 12 to Chapter 11
Chapter 12 to Chapter 13
If Court orders conversion of case to another chapter

Fees on Motions to Divide a Joint Case:

Chapter 7	\$ 338.00
Chapter 11	\$1738.00
Chapter 12	\$ 278.00
Chapter 13	\$ 313.00

Fees on Motions:

Motion for Relief from Stay	\$ 199.00
- No charge if accompanied by a Consent Order	
- No charge if filed under §1301 or §1201 (co-debtor)	
- No charge to a child support creditor with affidavit or proper documentation	
Motion for Withdrawal of Reference	\$ 199.00
Motion to Compel Abandonment of Property of the Estate	\$ 199.00
Motion to Sell Property of the Estate Free and Clear of Liens	\$ 199.00

Other Fees:

Adversary Proceeding	\$ 350.00
- No charge to U.S. Agency, Debtor, Trustee or DIP if estate DOES NOT exist, a child support creditor with affidavit of other proper documentation	
Notice of removal	\$ 350.00
Amendment-Schedules D,E,F, List of creditors, Matrix or Mailing List	\$ 34.00
Appeal and Cross Appeal to U.S. District Court	\$ 298.00
Request for Direct Appeal or Direct Appeal to U.S. Court of Appeals	\$ 298.00
If authorized, Direct Appeal/Cross Appeal Fee	\$ 307.00

Copy Service Fees:

Exemplification Certification Fee (per document)	\$ 24.00
Certification fee (per document)	\$ 12.00
Copy Fee (per page)	\$ 0.50
Copy of Docket Sheet (per page)	\$ 0.50
Record Retrieval (off site) One Box	\$ 70.00
- Each Additional Box	\$ 43.00
Records Search (on site)	\$ 34.00
Reproduction of Records (Audio Tape/CD)	\$ 34.00
Electronic Record Fee (applies to records stored outside the court's ECF system, not limited to document files, audio recordings & video recordings)	\$ 33.00

Miscellaneous Fees:

Filing/Indexing of any document that is not Related to a pending case or proceeding	\$ 52.00
Returned or Denied Payment	\$ 53.00
Transfer of Claim	\$ 28.00
Redaction of a Record	\$ 28.00
Electronic Record Retrieval	\$20.90 plus \$0.65ppg